



## CHAPTER xxxvii.

An Act for conferring further powers upon the Great Eastern Railway Company for enabling the Great Northern and Great Eastern Joint Committee to acquire additional lands for extending the periods limited by former Acts for the completion of works for extending the time for the sale of superfluous lands held by the Company and by other companies and by certain joint committees for the electrification of the East London Railway and for other purposes.

A.D. 1912.

[7th August 1912.]

**W**HEREAS it is expedient that the Great Eastern Railway Company (in this Act called "the Company") be authorised to construct the widenings deviations and improvements of their railway and the other works in connection with their undertaking and to purchase the additional lands hereinafter described and to exercise the other powers by this Act specified:

And whereas it is expedient that the Great Northern and Great Eastern Joint Committee constituted under the provisions of the Great Northern and Great Eastern Railway Companies Act 1879 be authorised to purchase the additional land hereinafter described for the purposes of their joint undertaking:

And whereas it is expedient that the respective times limited for the completion by the Company of certain authorised works hereinafter more particularly referred to be further extended as by this Act provided:

And whereas by section 16 of the Great Eastern Railway (Capital &c.) Act 1865 (in this Act called "the Act of 1865") the Company were empowered in lieu of any tolls rates or dues which they then took or were entitled to charge with respect to



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A.D. 1912. the pier fish market or harbour at Lowestoft to demand and take the tolls rates and dues therein and in the Schedule B. to that Act specified and by section 30 of the Great Eastern Railway Act 1903 the powers of the Company in reference to the taking of rates on fish exported from Lowestoft were amended and it is expedient that the powers of the Company with respect to the taking of tolls rates or dues at Lowestoft be further amended as hereinafter provided:

And whereas by the County of Middlesex (Waltham Cross and Enfield) Light Railways Order 1906 (in this Act called "the Order of 1906") the county council of the administrative county of Middlesex (in this Act called "the Middlesex Council") were authorised to make and maintain certain railways therein described including a railway in the parish of Enfield in the county of Middlesex running along Southbury Road and across the bridge whereby such road is carried over the railways of the Company near Churchbury Station (which bridge is in this Act called "the railway bridge") and to enter upon take and use such of the lands therein referred to as might be required for the purposes of the Order of 1906 but as to lands of the Company not without the consent in writing of the Company:

And whereas by an agreement (a copy whereof is set out in the Second Schedule to this Act) made the 11th day of May 1910 between the Company of the one part and the Middlesex Council of the other part (which agreement is in this Act called "the Middlesex agreement") provision was made for the sale by the Company to the Middlesex Council for the purposes of the railways and works authorised by the Order of 1906 of an easement or right of user of certain lands in the said parish of Enfield partly forming the embankments supporting the said Southbury Road and the railway bridge for the widening by the Company at the expense of the Middlesex Council of the railway bridge and by the Middlesex Council of the approaches thereto and for the repair and maintenance by the Middlesex Council of certain portions of the widened bridge and the approaches thereto:

And whereas it is expedient that the Middlesex agreement be confirmed and that the widening by the Company and the Middlesex Council of the railway bridge and the approaches thereto and the execution of other works in connection therewith and the repayment to the Company by the Middlesex Council of the cost of such widening and works should be sanctioned and confirmed:



And whereas by an indenture of lease dated the 1st day of February 1896 and made between the Company of the one part and J. & J. Colman Limited (whose registered office is situate at Carrow Works in the county of the city of Norwich and who are in this Act referred to as "the limited company") of the other part the Company demised to the limited company (inter alia) a piece of land at Trowse in the city of Norwich for a term of twenty-five years from the 25th day of December 1895 and by an agreement dated the 28th day of October 1869 and made between the Company of the one part and Messrs. J. & J. Colman (the predecessors in title of the limited company) of the other part the Company demised to Messrs. J. & J. Colman (inter alia) certain other land at Trowse such demise being subject to determination at six months' notice by either party:

And whereas the limited company occupy the said lands at Trowse and are desirous of purchasing the freehold reversion of and in the same but the Company are unwilling to convey such reversion without reserving to themselves a power of re-purchasing the said lands in certain contingencies for purposes connected with the Company's railway and it is expedient that the Company may be empowered to convey the said lands to the limited company subject to such reservation as aforesaid:

And whereas by an indenture of lease (in this Act called "the East London lease") dated the 30th day of March 1889 and made in pursuance of the provisions of the East London Railway Act 1882 (in this Act called "the Act of 1882") between the East London Railway Company (in this Act called "the East London Company") of the one part and the London Brighton and South Coast Railway Company (in this Act called "the Brighton Company") the South Eastern Railway Company (in this Act called "the South Eastern Company") the London Chatham and Dover Railway Company (in this Act called "the Chatham Company") the Metropolitan Railway Company (in this Act called "the Metropolitan Company") the Metropolitan District Railway Company (in this Act called "the District Company") and the Company of the other part the East London Railway was leased to the six last mentioned companies in perpetuity as from the 1st day of October 1884:

And whereas by an agreement (a copy whereof is set out in the Third Schedule to this Act) made the twentieth day of December 1911 between the East London Company of the



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A.D. 1912. first part the Company of the second part the Brighton Company of the third part the Metropolitan Company of the fourth part the District Company of the fifth part the South Eastern Company of the sixth part and the Chatham Company of the seventh part (which said agreement is in this Act referred to as "the East London agreement") provision was made for the electrification of the East London Railway and the provision of the necessary funds for that purpose and it is expedient that such agreement be confirmed and that provision be made for carrying the objects thereof into effect:

And whereas it is expedient that the Company be authorised to raise further money for the purposes of this Act and the general purposes of their undertaking and that the Company and the other companies and the joint committee in that behalf in this Act mentioned be empowered to apply their funds for the purposes of this Act:

And whereas by section 42 subsection (4) of the Great Eastern Railway (General Powers) Act 1897 (in this Act called "the Act of 1897") provision was made for the investment of all moneys forming part of the superannuation fund under any new or modified superannuation scheme established under the powers of that section in debenture stock or guaranteed or preference stock of the Company at the market price of the day of investment and by the Great Eastern Railway (Pensions) Act 1898 (in this Act called "the Pensions Act 1898") similar provision was made for the investment of moneys forming the new pension fund and the new pension supplemental fund mentioned in section 8 of the Pensions Act 1898:

And whereas under the new superannuation scheme which has been established under the provisions of section 42 of the Act of 1897 and under section 6 of the Pensions Act 1898 the Company are under obligation to guarantee payment out of their revenue as part of the working expenses of their undertaking of the superannuation and other allowances payable under the said new superannuation scheme and the pensions and other allowances and repayments or gratuities payable under the new pension scheme and the new pension supplemental scheme established under the Pensions Act 1898:

And whereas considerable sums forming part of the said new superannuation fund new pension fund and new pension supplemental fund are invested in the debenture and preference



stocks of the Company (the greater part being invested in the Company's debenture stock) and it is expedient that the Company should be authorised to create and issue debenture stock for the purpose of investing any sums forming part of the said new superannuation fund new pension fund and new pension supplemental fund and that the powers of the Company with reference to the borrowing of money and the creation and issue of debenture stock should be increased accordingly : A.D. 1912.

And whereas it is expedient that the Company should be empowered to issue warrants and certificates to bearer for stock or shares or debenture stock and that the provisions hereinafter contained with respect to such warrants and certificates and the bearers thereof should be made :

And whereas plans and sections showing the lines situations and levels of the works by this Act authorised to be constructed and plans of the lands authorised to be taken acquired and held under the powers of this Act and books of reference to such plans respectively containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands respectively were duly deposited as follows (that is to say) :—

As regards works and lands in the county of Norfolk and works and lands partly in that county and partly in the county of Suffolk (eastern division) with the clerk of the peace for the county of Norfolk ;

As regards works and lands in the county of Essex with the clerk of the peace for that county ;

As regards works and lands in the county of Suffolk (whether eastern or western divisions) and works and lands partly in that county and partly in the county of Norfolk with the clerk of the peace for the eastern division of the county of Suffolk and with the clerk of the peace for the western division of the county of Suffolk ;

As regards lands in the Isle of Ely in the county of Cambridge and works and lands partly in the Isle of Ely and partly in the county of Cambridge outside the Isle of Ely with the clerk of the peace for the Isle of Ely and as regards such works and lands and other works and lands in the county of Cambridge with the clerk of the peace for the county of Cambridge ;



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A.D. 1912. As regards works in the county of London with the clerk of the peace for that county; and

As regards lands in the county of Middlesex with the clerk of the peace for that county;

and the said plans sections and books of reference respectively are in this Act referred to as "the deposited plans sections and books of reference":

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title. 1. This Act may be cited as the Great Eastern Railway Act 1912.

Incorporation of general enactments. 2. The following enactments (as far as they are applicable for the purposes of and are not inconsistent with or expressly varied by this Act) are hereby incorporated with and shall be part of this Act (that is to say):—

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the several matters following (namely):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;



Parts I. II. and III. of the Companies Clauses Act 1863 .A.D. 1912.  
(as amended by subsequent Acts) relating respectively to  
cancellation and surrender of shares to additional capital  
and to debenture stock ;

The Lands Clauses Acts ;

The Railways Clauses Consolidation Act 1845 ;

Parts I. and II. of the Railways Clauses Act 1863 relating  
respectively to construction of a railway and to extension  
of time ; and

The Harbours Docks and Piers Clauses Act 1847 except  
section 12 and except sections 16 to 19 inclusive (unless  
the Company shall be required by the Board of Trade to  
provide and maintain a lifeboat and tide and weather  
gauge) :

Provided that the following expressions used in the  
Harbours Docks and Piers Clauses Act 1847 shall have the  
following respective meanings (that is to say):—

The expressions “packet boat” and “Post Office packet”  
mean respectively a vessel employed by or under the  
Post Office or the Admiralty for the conveyance under  
contract of postal packets as defined by the Post Office  
Act 1908 and the expression “Post Office bag of letters”  
means a mail bag as defined by the same Act Provided  
that nothing in the Harbours Docks and Piers Clauses  
Act 1847 or in this Act shall extend to exempt from  
rates or duties any such vessel as aforesaid if she also  
conveys passengers or goods for hire.

**3.** In this Act—

The several words and expressions to which meanings are  
assigned by the Acts wholly or partially incorporated  
herewith have the same respective meanings unless  
there be something in the subject or context repugnant  
to such construction ;

The expression “the railway works” means the widenings  
and improvements and the deviations and improvements  
of railways by this Act authorised ;

The expression “the river walls” means the river walls or  
embankments by this Act authorised ;

The expression “the pier widening” means the widening  
of the Company’s existing South Pier at Lowestoft by  
this Act authorised ;

Interpreta-  
tion.



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The expression "the lessee companies" means the Company the London Brighton and South Coast Railway Company the Metropolitan Railway Company the Metropolitan District Railway Company the South Eastern Railway Company and the London Chatham and Dover Railway Company;

The expression "the joint committee" means the joint committee for the management and control of the East London Railway appointed in pursuance of the Act of 1882;

"The East London Railway" means the railways of the East London Railway Company which under or by virtue of the Act of 1882 and of the East London lease are leased in perpetuity to the lessee companies;

"The undertakers" means the lessee companies or the joint committee as the case may be.

Interpretation of term "parish clerks" &c.

4. The expressions "parish clerks" and "clerks of the several parishes" in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs.

Protection of gas and water mains of local authorities.

5. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Power to execute works.

6. Subject to the provisions of this Act the Company may make execute and maintain in the lines or situations and within the limits of lateral deviation shown on the deposited plans and according to the levels shown on the deposited sections the works described in this section with all proper and convenient bridges arches piers abutments walls piles embankments stations junctions rails sidings buildings approaches roads quays wharves groynes breakwaters wharf wall retaining works booms caissons cofferdams fenders pontoons landing-places warehouses mooring buoys stages cranes lifts machinery water pipes pumps and other works and conveniences connected therewith and may



enter upon take and use such of the lands delineated on the A.D. 1912. deposited plans and described in the deposited books of reference as may be required for those purposes.

The works hereinbefore referred to and authorised by this Act are the following (that is to say):—

- (A) The following widenings and improvements in the county of Norfolk of the Company's Norwich to Cromer line of railway (that is to say):—

A widening and improvement (No. 1) commencing in the parish and urban district of North Walsham at a point on the said railway half a chain or thereabouts north of the bridge carrying such railway over the Aylsham Road and terminating in the parish of Thorpe Market at a point on such railway 10 chains or thereabouts south of the centre of the Gunton Station buildings;

A widening and improvement (No. 2) commencing in the said parish of Thorpe Market at a point on the said railway 1 chain or thereabouts north of the centre of Gunton Station buildings and terminating in the parish of Northrepps at a point on the said railway at or near the junction thereof with the Company's Sheringham loop line:

- (B) A widening and improvement (No. 3) in the county of Essex of the Company's Clacton branch railway commencing in the parish of Thorpe-le-Soken at a point on the said railway  $3\frac{1}{2}$  chains or thereabouts east of the centre of Thorpe-le-Soken Station buildings and terminating in the parish of Great Clacton in the urban district of Clacton at a point on the said railway 4 chains or thereabouts north of the northern end of the centre platform of Clacton Station:

- (c) The following widenings and improvements in the county of Suffolk (eastern division) of the Company's Felixstowe branch railway (that is to say):—

A widening and improvement (No. 4) wholly in the parish and county borough of Ipswich commencing at a point on the said branch railway  $5\frac{1}{2}$  chains or thereabouts east of the junction of the said branch railway with the Company's main line and terminating at a point on the said branch



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railway half a chain or thereabouts north of the centre of the bridge carrying Derby Road over the said branch railway;

A widening and improvement (No. 5) commencing in the said parish and county borough of Ipswich at a point on the said branch railway  $6\frac{1}{2}$  chains or thereabouts south of the centre of Derby Road Station buildings and terminating in the parish of Nacton at a point on the said branch railway  $2\frac{1}{2}$  chains or thereabouts north-west of the centre of Orwell Station buildings;

A widening and improvement (No. 6) commencing in the said parish of Nacton at a point on the said branch railway 3 chains or thereabouts south-east of the centre of Orwell Station buildings and terminating in the parish of Trimley St. Mary at a point on the said branch railway  $3\frac{1}{2}$  chains or thereabouts north-west of the centre of Trimley Station buildings;

A widening and improvement (No. 7) commencing in the said parish of Trimley St. Mary at a point on the said branch railway  $3\frac{1}{2}$  chains or thereabouts south-east of the centre of Trimley Station buildings and terminating in the parish of Walton in the urban district of Felixstowe and Walton at a point on the said branch railway 1 chain or thereabouts west of the bridge carrying Garrison Lane over such railway:

(D) A widening and improvement (No. 8) of the Company's Ely and Newmarket branch railway commencing in the parish of Ely St. Mary in the urban district of Ely in the Isle of Ely in the county of Cambridge at a point on the said branch railway immediately opposite the signal box at Dock junction and terminating in the parish of Soham in the county of Cambridge at a point on such branch railway 1 chain or thereabouts measured in a northerly direction along such branch railway from Barraway Siding signal box:

(E) A widening and improvement (No. 9) in the county of Cambridge of the Company's Cambridge main line commencing in the parish of Whittlesford at a point on such railway  $10\frac{1}{2}$  chains south of the centre of



the bridge carrying such railway over the River Cam and terminating in the parish of Sawston at a point on such railway half a chain or thereabouts south of the Sawston Siding signal box: A.D. 1912.

(F) The following deviations and improvements of the Company's Beccles to Yarmouth line and works in connection therewith (that is to say):—

(1) A deviation and improvement (No. 1) commencing in the parish and borough of Beccles in the county of Suffolk (eastern division) at a point on such railway 20 chains or thereabouts south of the centre of the swing bridge carrying the said railway over the River Waveney in the said parish of Beccles and terminating in the parish of Aldeby in the county of Norfolk at a point on the said railway 18 chains or thereabouts north of the centre of the said swing bridge together with a swing bridge for carrying the said railway where so deviated over the River Waveney;

(2) A deviation and improvement (No. 2) commencing in the parish of Haddiscoe in the county of Norfolk at a point on such railway 7 chains or thereabouts south of the centre of the bridge carrying such railway over the River Waveney near St. Olaves Station and terminating in the parish of Herringfleet in the county of Suffolk (eastern division) at a point on such railway 10 chains or thereabouts north of the centre of such bridge together with a swing bridge for carrying the said railway where so deviated over the River Waveney;

And the Company may upon the completion and opening for public traffic of the said deviations and improvements respectively take down and abandon the existing swing bridges:

(G) The reconstruction widening and lengthening in the said parish and county borough of Ipswich of the existing bridge carrying the Company's Colchester main line over Ancaster Road namely a widening on the north side of the railway for a width of 50 feet and on the south side for a width of 18 feet and a lengthening of the bridge on the east side for a



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length of 14 feet and on the west side for a length of 5 feet and in connection with such reconstruction widening and lengthening a widening of Ancaster Road underneath the reconstructed bridge:

- (H) A river wall or embankment (No. 1) in the parish and borough of Lowestoft in the county of Suffolk (eastern division) upon the bed and shore of Lake Lothing on the north side thereof commencing at a point in such lake  $16\frac{1}{2}$  chains or thereabouts measured in a north-westerly direction from the south-west corner of the southern end of Chambers' Slipway and extending in a south-easterly direction to a point  $1\frac{1}{2}$  chains measured in a north-westerly direction from the said south-west corner of Chambers' Slipway and there terminating:
- (I) A river wall or embankment (No. 2) in the said parish and borough of Lowestoft on the bed and shore of the said Lake Lothing on the north side thereof commencing at a point in such lake  $6\frac{1}{2}$  chains or thereabouts measured in a south-easterly direction from the said south-west corner of Chambers' Slipway and extending in a south-easterly direction for a distance of 10 chains and there terminating:
- (J) A widening in the said parish and borough of Lowestoft and on the foreshore and bed of the sea of the Company's existing south pier on its south side commencing at the shore end of such pier and terminating at a point 8 chains or thereabouts measured in an easterly direction along such pier:
- (K) An extension in the said parish and borough of Lowestoft and on the foreshore and bed of the sea of the existing breakwater belonging to the mayor aldermen and burgesses of the borough of Lowestoft (hereinafter called "the Lowestoft Corporation") situate on and adjoining the south side of the Company's said pier for a distance of 27 feet or thereabouts in a south-westerly direction;

And on the completion by the Company of the said extension of the existing breakwater such extension shall be by this Act vested in the Lowestoft Corporation as part of the existing breakwater:



(L) The alteration strengthening and reconstruction in the parish of Saint Anne Limehouse in the metropolitan borough of Stepney in the county of London of the bridge carrying the London and Blackwall Railway over the Regent's Canal near Regent's Wharf. A.D. 1912.

7. In constructing the works hereinbefore described and authorised by this Act the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels of the works as shown on the deposited sections to any extent not exceeding five feet upwards and ten feet downwards. Provided that nothing in this section shall authorise the Company to deviate from the lines or levels of the railway works beyond the limits prescribed by the Railways Clauses Consolidation Act 1845. Provided also that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade. Limits of deviation.

8. In executing and maintaining the widenings and improvements of railways by this Act authorised the Company may lay down and maintain an additional line of rails across and on the level of the several roads which any of the existing railways so to be widened and improved now crosses on the level. Existing level crossings may be maintained.

9. The Company may make the arches of the bridges for carrying the widenings and improvements by this Act authorised over the roads next hereinafter mentioned of any heights and spans not less than the heights and spans hereinafter mentioned in connection therewith respectively (that is to say):— Height and span of bridges.

| Work.                             | No. on deposited Plans. | Parish.         | Description of Road. | Height. | Span.   |
|-----------------------------------|-------------------------|-----------------|----------------------|---------|---------|
|                                   |                         |                 |                      | Ft. in. | Ft. in. |
| Widening and Improvement (No. 1). | 3                       | North Walsham   | Public               | 15 3    | 20 0    |
| Ditto - -                         | 7                       | Ditto           | Ditto                | 15 0    | 20 0    |
| Ditto - -                         | 2                       | Antingham       | Ditto                | 17 6    | 20 0    |
| Ditto - -                         | 6                       | Ditto           | Ditto                | 15 11   | 20 0    |
| Widening and Improvement (No. 2). | 4                       | Southrepps      | Ditto                | 14 10   | 20 0    |
| Ditto - -                         | 4                       | Northrepps      | Ditto                | 14 10   | 20 0    |
| Ditto - -                         | 7                       | Ditto           | Ditto                | 14 10   | 20 0    |
| Widening and Improvement (No. 3). | 6                       | Thorpe-le-Soken | Ditto                | 14 11   | 24 2    |
| Ditto - -                         | 23                      | Great Clacton   | Ditto                | 13 0    | 20 0    |



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Width of  
roadway over  
bridge.

**10.** The Company may make the roadway over the bridge by which the public road numbered on the deposited plans 9 in the parish of Little Clacton will be carried over the Widening and Improvement (No. 3) by this Act authorised of such width between the fences thereof as the Company think fit not being less than twenty feet.

Company  
not bound to  
maintain  
surface of  
roads &c.  
unless level  
permanently  
altered.

**11.** Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over any of the widenings and improvements by this Act authorised by a bridge or bridges or the immediate approaches thereto except so far as the level of such road or public highway is permanently altered.

Tolls on rail-  
way works.

**12.** Subject to the provisions of this Act the railway works shall in respect of tolls rates and charges and in all other respects be deemed to form part of the undertaking of the Company.

Power to  
dredge River  
Waveney  
and Lake  
Lothing.

**13.** The Company may from time to time dredge and deepen and remove any rocks banks sand mud or shingle from the channel and bed of the River Waveney and of Lake Lothing at or near the sites of the said railway bridges authorised to be constructed by this Act or adjoining or near to the river walls or for the purpose of obtaining access thereto to such extent as the Company may deem it necessary or expedient to do in that behalf and may appropriate use and dispose of as they think fit the soil and materials so dredged or removed Provided that all materials excavated or dredged under the provisions of this section if deposited below high-water mark shall be deposited in such position and under such restrictions as may be fixed by the Board of Trade.

Power to  
reclaim  
lands.

**14.** The Company may enclose and reclaim the portions of the foreshore and bed of Lake Lothing which will lie between the river walls respectively and the northern bank of such lake and the portions of the foreshore and bed of Lake Lothing so enclosed and reclaimed shall subject to the provisions of the section of this Act of which the marginal note is "Crown rights" vest in and belong to the Company.

Pier widen-  
ing to form  
part of  
existing  
pier &c.

**15.** The pier widening shall for the purposes of tolls rates and charges byelaws rules and regulations the powers and duties of the harbour-master and in all other respects form part of the Company's existing south pier and of the Company's fish market at Lowestoft and the Acts relating to the Company's existing



harbour at Lowestoft and to the said existing pier and fish market so far as they are now in force shall be applicable to the pier widening as if they had been specifically re-enacted and made applicable thereto by this Act. A.D. 1912.

**16.** The Company may remove all or any works of or connected with their harbour at Lowestoft and the said south pier as existing at the passing of this Act the maintenance of which may be rendered unnecessary by or the removal of which may be considered expedient in consequence of the construction of the pier widening and may excavate and dredge the area forming the site of or adjoining or near to the pier widening or to the extension of the existing breakwater of the Lowestoft Corporation by this Act authorised so far as may be necessary for making and maintaining sea approaches to the said harbour or access to the said south pier or to the existing breakwater as widened or extended under the powers of this Act. Power to dredge at Lowestoft.

**17.** The swing bridges across the River Waveney by this Act authorised shall be kept closed across the said river except at such times as it shall be necessary to open the same for the passage of vessels but a vessel requiring to pass through either swing bridge shall not be detained for any longer time than shall be sufficient to allow any engines carriages and trucks approaching the bridge to cross the same and to allow of the opening of the bridge thereafter and subject as aforesaid the Company after the opening for public traffic of the said bridges shall if required to do so by the Board of Trade from time to time thereafter make byelaws rules and regulations with respect to the opening and closing of the said bridges respectively and the time and mode of vessels passing through the same and such byelaws and rules and regulations may impose penalties for any breach thereof Provided that no such byelaws rules or regulations shall have any force or validity until the same have been approved and confirmed by the Board of Trade. With respect to swing bridges over River Waveney.

**18.** Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade. Works below high-water mark to be subject to approval of Board of Trade.



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Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Company and the amount of such cost shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of  
works by  
Board of  
Trade.

19. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Company under the powers of this Act on in over through or across tidal lands or tidal water or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Abatement  
of works  
abandoned or  
decayed.

20. If any of the works constructed by the Company under the powers of this Act on in over through or across tidal lands or tidal water are abandoned or suffered to fall into decay the Board of Trade may abate and remove the same or any part of them and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Lights on  
works during  
construction.

21. The Company shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Permanent  
lights on  
works.

22. The Company shall at the outer extremity of their works below high-water mark exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of the Trinity House of Deptford Strond shall from time to time direct. If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.



**23.** In case of injury to or destruction or decay of the work below high-water mark by this Act authorised or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of the Trinity House of Deptford Strond and shall apply to that corporation for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

A.D. 1912.  
Provision  
against  
danger to  
navigation.

**24.** If the following works are not completed within the respective periods hereinafter mentioned then on the expiration of those respective periods the powers by this Act granted to the Company for making and completing the respective works or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed (that is to say):—

Period for  
completion  
of certain  
works.

(A) As regards the Deviation and Improvement (No. 1) and the Deviation and Improvement (No. 2) by this Act authorised five years from the passing of this Act; and

(B) As regards the river walls the pier widening and the extension by this Act authorised of the existing break-water at Lowestoft seven years from the passing of this Act.

**25.** For the protection of the council of the rural district of Tendring in the county of Essex (in this section called "the council") the following provisions unless otherwise agreed between the council and the Company shall apply and have effect (that is to say):—

For pro-  
tection of  
Tendring  
Rural Dis-  
trict Council.

(1) The bridge carrying the Widening and Improvement (No. 3) across the road numbered on the deposited plans 6 in the parish of Thorpe-le-Soken shall be constructed and maintained so as to prevent as far as practicable the dripping of water on to the said road or the footpath at the side thereof from the said bridge:

(2) The embankment adjoining the said bridge shall be adequately drained to the reasonable satisfaction of the surveyor of the council. The Company shall to



A.D. 1912.

the like satisfaction efficiently pipe the ditch or watercourse on the east side of the said road :

(3) Notwithstanding anything shown on the deposited plans and sections the gradient of the approaches to the bridge numbered on the deposited plans 9 in the parish of Little Clacton shall not exceed on the west side of the said bridge one in twenty-six and on the east side one in twenty :

(4) If any difference shall arise between the Company and the council under the provisions of this section the same shall (unless otherwise agreed) be determined by an engineer to be appointed as arbitrator upon the application of either of the parties by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply.

For protection of Great Yarmouth Port and Haven Commissioners.

**26.** For the protection of the Great Yarmouth Port and Haven Commissioners (in this section called "the commissioners") the following provisions shall unless otherwise agreed between the commissioners and the Company apply and have effect (that is to say) :—

(1) Notwithstanding anything contained in this Act or shown on the deposited plans and sections—

(A) The Company shall carry the Deviation and Improvement (No. 1) by this Act authorised across the River Waveney by means of a swivel or opening bridge with a clear headway throughout when closed of not less than nine feet eight inches between the level of high water of ordinary spring tides and the underside of the bridge and with a clear span throughout measured on the square with the said river and without any intervening support or obstruction of not less than forty-five feet ;

(B) The Company shall carry the Deviation and Improvement (No. 2) by this Act authorised across the said river by means of a swivel or opening bridge with a clear headway throughout when closed of not less than fourteen feet six inches between the level of high water of ordinary spring tides and the underside of the bridge and with a clear span throughout measured on the square with the said



river and without any intervening support or obstruction of not less than fifty-five feet; A.D. 1912.

And the said bridges shall be so constructed as to afford when open a clear and uninterrupted navigable waterway for masted vessels navigating the said river to pass through the bridges:

(2) The said bridges and the spans of the viaducts as described on the deposited plans and all works of the Company affecting the bed banks walls or foreshore of the said river shall be executed according to such plans sections and specifications as shall have been previously submitted to and reasonably approved in writing by the engineer of the commissioners or in case of difference between him and the engineer of the Company by an arbitrator to be appointed as hereinafter provided And the Company shall not commence the construction of the said bridges viaducts spans and works or enter upon or interfere with the bed banks walls or foreshore of the said river until such plans sections and specifications have been so submitted and approved Provided that if the engineer of the commissioners does not within twenty-eight days of such submission signify his approval or disapproval of the plans sections and specifications submitted he shall be deemed to have approved thereof and any difference which may arise between the commissioners and the Company as to the reasonableness of withholding such approval shall be determined by arbitration as hereinafter provided:

(3) During the construction of each of the said bridges and works and during any future repairs thereof the Company shall (except as hereinafter provided) so far as practicable leave a free open and uninterrupted navigable waterway in the said river of not less than twenty-five feet in respect of the said Deviation and Improvement (No. 1) and of not less than thirty feet in respect of the said Deviation and Improvement (No. 2) Provided that for a period of not more than fourteen days during the construction of each of the said bridges and works the Company shall be at liberty after giving not less than fourteen days previous public notice by advertisement in two



A.D. 1912.

newspapers circulating in the district to entirely close the waterway in the said river for the passage of vessels with fixed masts or funnels:

- (4) If the Company shall in the construction of the said bridges or any works in connection therewith cause damage to the banks or walls of the said river adjacent to or within one hundred yards above and below the said bridges or either of them the Company shall as soon as practicable make good such damage to the reasonable satisfaction of the commissioners or in case of difference of an arbitrator to be appointed as hereinafter provided:
- (5) If during the construction of the said bridges and works the Company shall except during the periods and to the extent allowed by subsection (3) of this section cause an obstruction to the navigation of the said river or if by reason of the defect failure or want of repair of the said bridges and works any obstruction is caused to the navigation of the said river the Company shall indemnify and compensate the commissioners in respect of all damages costs and expenses which they may sustain or incur by reason or in consequence of any such obstruction:
- (6) The Company shall before commencing to dredge the said river under the powers conferred by the section of this Act whereof the marginal note is "Power to dredge River Waveney and Lake Lothing" deliver to the commissioners plans sections and descriptions defining the nature extent and manner of such dredging and if the commissioners within twenty-eight days after the delivery of such plans sections and descriptions express their disapproval of the same any question as to the dredging proposed to be carried out by the Company shall be referred to arbitration as hereinafter provided and the Company shall not carry out such dredging otherwise than in accordance with such plans sections and descriptions and in such manner as may be approved by the commissioners or the arbitrator as the case may be Provided that if the engineer of the commissioners does not within twenty-eight days of such delivery signify his approval or disapproval of the plans sections and descriptions



delivered he shall be deemed to have approved thereof and any difference which may arise between the commissioners and the Company as to the reasonableness of withholding such approval shall be determined by arbitration as hereinafter provided: A.D. 1912.

- (7) If any difference shall arise between the Company and the commissioners or their respective engineers under this section or as to anything to be done or not to be done thereunder such difference shall be referred to and determined by an arbitrator to be nominated failing agreement by the Board of Trade on the application of either party and subject as aforesaid the Arbitration Act 1889 shall apply to the reference.

27. In carrying out the alteration strengthening reconstruction and maintenance by this Act authorised in the parish of St. Anne Limehouse in the county of London of the bridge carrying the London and Blackwall Railway over the Regent's Canal (in this section called "the canal") near Regent's Wharf (which works are in this section called "the said works") the following provisions shall unless otherwise agreed between the Company and the Regent's Canal and Dock Company (in this section called "the canal company") under their respective common seals apply and have effect:—

For protection of Regent's Canal and Dock Company.

- (1) The Company shall not alter the line or level of the canal or of the towing path thereof or of any part or parts thereof respectively or divert or intercept cut off take use or diminish any of the waters in the canal or which may be taken for the use of or which supply the canal or damage injure or interfere with any of the works of the canal or except as in this section provided diminish or alter the width of the waterway or towing path thereof:
- (2) The Company shall so construct the said works as that no part of the underside of the said bridge when altered strengthened or reconstructed shall be less than fifteen feet six inches above the level of the waste water at the Salmon's Lane Lock:
- (3) Nothing in this Act contained shall compel the canal company to convey or assign to the Company the fee simple of any part of the canal or works or any land belonging to the canal company adjoining the canal but the same shall remain vested in the canal



A.D. 1912.

company subject nevertheless to the right of the Company their successors and assigns to construct and for ever hereafter maintain repair and renew the said works and to have use and possess such way and passage for the said works together with all rights and easements necessary to the due use and enjoyment of the same:

- (4) The Company shall before commencing any of the works give to the canal company seven days' notice of their intention so to do. The said works shall be carried on and completed so and in such manner that no unnecessary obstruction shall be caused to the boats or barges navigating the canal or the horses towing the same and for such purpose the canal company shall give the Company all reasonable facilities for enabling them to carry out such works without causing any such obstruction as aforesaid. Provided that the Company shall during the progress of constructing the said works and of any necessary repairs or renewals thereof at all times leave an open and uninterrupted navigable waterway in the canal of not less than thirty feet in width of water with six feet for the towing path and ten feet headway above the level of the waste water at the Salmon's Lane Lock aforesaid:
- (5) If in the construction maintenance or repair of the said works or in consequence of the defect failure or want of repair thereof any obstruction to the navigation of the canal or the passage along the towing path contrary to the provisions of this section or any other damage shall be occasioned to the canal the Company shall indemnify and compensate the canal company in respect of all such damage costs and expenses as they may sustain or incur by reason or in consequence thereof:
- (6) The Company will after the commencement of the works complete the same with all reasonable despatch:
- (7) If any difference arise between the Company and the canal company under this section such difference shall in default of agreement be determined by an engineer to be appointed by the Board of Trade upon the application of either party.



28. The Company in addition to the other lands which they are by this Act authorised to acquire may enter upon and take compulsorily or by agreement and may appropriate and use for the purposes of extending or affording access to their railways stations sidings warehouses buildings wharves depôts and other accommodation and for the general purposes of their undertaking all or any of the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference and any estates or interests in any such lands and may hold and use for all or any of the above-mentioned purposes such of the said lands as have already been purchased or acquired by them and the purchase of such last-mentioned lands and the expenditure of money by the Company in connection therewith is hereby sanctioned and confirmed Provided that the said lands so already purchased or acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section The lands above referred to and by this section authorised to be entered upon and taken appropriated and used are as follows:—

A.D. 1912.  
Power to  
Company to  
acquire addi-  
tional lands.

In the county of Middlesex—

A strip of land in the parish and urban district of Enfield situate on and adjoining the south-west side of the Company's engine shed and sidings at their Enfield Town Station:

In the county of Essex—

- (A) A strip of land in the parish of Bradfield situate on and adjoining the south side of the Company's Harwich branch railway;
- (B) A strip of land in the parish and borough of Colchester situate on and adjoining the north side of the Company's station yard at Colchester;
- (c) A piece of land in the parish and county borough of West Ham forming the south-easterly portion of the disused brickfield belonging or reputed to belong to Gerard Thomas Manby-Colegrave and situate on the northern side of the Company's High Meads loop railway;
- (D) A strip of land in the parish of Weeley situate on the northern side of the Company's Clacton branch railway;



A.D. 1912.

- (E) A strip of land in the said parish of Weeley situate on the north-eastern side of the said branch railway;
- (F) A strip of land in the parish and urban district of Buckhurst Hill situate on the north side of the Company's Woodford to Ilford branch railway and a strip of land in the same parish situate on the south side of the said branch railway;
- (G) Three strips of land in the parish of Chigwell on the north side of the said Woodford to Ilford branch railway;
- (H) Three strips of land in the said parish of Chigwell on the south side of the said Woodford to Ilford branch railway;
- (I) A strip of land in the parish and urban district of Romford situate on and adjoining the north-west side of the Company's Squirrels Heath Station on the Company's Colchester main line;
- (J) A strip of land in the said parish and urban district of Romford situate on and adjoining the south-east side of the Company's said Squirrels Heath Station;
- (K) A piece of land in the parish of Hornchurch situate on the south-east side of the Company's Colchester main line near Harold Wood Station:

In the county of Suffolk (Eastern Division)—

- (A) A strip of land in the parish and urban district of Leiston-cum-Sizewell situate on and adjoining the south side of the Company's Leiston Station;
- (B) A strip of land in the parish and county borough of Ipswich situate on and adjoining the north side of the Company's Westerfield Station;
- (C) Two houses in the parish and borough of Lowestoft being the properties numbered 23 and 24 in Commercial Road:

In the county of Suffolk (Western Division)—

A strip of land in the parish of Brandon situate on and adjoining the south side of Lakenheath Station:

In the county of Norfolk—

(A) In the parish of Brundall—

- (1) A piece of land situate on the north-east side of the Brundall Station of the Company;



- (2) A piece of land situate on the north side of the Company's Brundall Acle and Yarmouth line near Brundall Station ;
- (B) A strip of land in the parish of Wymondham situate on and adjoining the south-east side of the Company's Spooner Row Station ;
- (c) In the parish of Wolferton—
- (1) A strip of land situate on the south-east side of and adjoining the Company's sidings on the west side of Wolferton Station being part of the properties numbered on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1905) 145 and 154 in the said parish ;
- (2) Three strips of land situate on the south-east side of and adjoining the Company's Wolferton Station and being portions of the property numbered on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1905) 163 in the said parish ;
- (3) A strip of land situate on the south-east side of and adjoining the Company's Wolferton Station being a portion of the property numbered on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1905) 158 in the said parish ;
- (4) Three pieces of land situate on and adjoining the north-west side of the Company's Wolferton Station being respectively portions of the properties numbered respectively on the Ordnance map (scale  $\frac{1}{2500}$  2nd edition 1905) 157A and 157B 157 and 157B and 165A in the said parish :

In the county of Cambridge—

A strip of land in the parish of Oakington situate on and adjoining the west side of Oakington Station :

In the Isle of Ely in the county of Cambridge—

A triangular piece of land in the parish of Ely Trinity in the urban district of Ely situate on the south side of and adjoining the Company's railway or siding known as Padnal siding.

**29.** And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans

Owners may be required to sell parts only of certain lands and buildings.



A.D. 1912. will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto. Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter in this section included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed



from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845



A.D. 1912. contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Land for  
extra-  
ordinary  
purposes.

**30.** The Company in addition to any other lands which by this or any other Act they are authorised to acquire may by agreement from time to time purchase additional land for any of the extraordinary purposes specified in the Railways Clauses Consolidation Act 1845 connected with their undertaking not exceeding in quantity one hundred acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased under the powers of this section.

Power to  
Great Nor-  
thern and  
Great  
Eastern joint  
committee to  
acquire ad-  
ditional  
land.

**31.** The Great Northern and Great Eastern joint committee may enter upon and take compulsorily or by agreement and may appropriate and use for the purposes of the undertaking vested in them the land hereinafter described and delineated on the deposited plans and described in the deposited books of reference and any estates or interests in such land (that is to say) :—

A piece of land in the parish and urban district of Chatteris in the Isle of Ely in the county of Cambridge situate on the west side of the Great Northern and Great Eastern joint committee's Chatteris Dock goods station.

Period for  
compulsory  
purchase of  
lands.

**32.** The powers of the Company and of the Great Northern and Great Eastern joint committee respectively for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Persons  
under dis-  
ability may  
grant ease-  
ments &c.

**33.** Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or to the Great Northern and Great Eastern joint committee any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of



this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. A.D. 1912.

**34.**—(1) The period now limited for the completion of the following work (namely):— Extending time limited for completion of works authorised by former Acts.

- (A) The widening and improvement authorised by section 5 subsection (F) of the Great Eastern Railway (General Powers) Act 1897 of the Company's Ware and Hertford branch railway;

is hereby further extended for a period of three years from the fifteenth day of July one thousand nine hundred and twelve.

(2) The period now limited for the completion of the following works (namely):—

- (B) The widening authorised by section 5 subsection (3) (A) of the Great Eastern Railway (General Powers) Act 1898 (in this section called "the Act of 1898") of the Company's siding or line of rails and of the bridge over the River Orwell mentioned respectively in that subsection; and

- (C) The works (widening of bridge at Ipswich and additional line or lines of rails) authorised by section 5 subsection (3) (c) of the Act of 1898;

is hereby further extended for a period of three years from the first day of July one thousand nine hundred and twelve.

(3) The period now limited for the completion of the following work (namely):—

- (D) The Widening and Improvement (No. 2) of the Company's main line at West Ham authorised by section 4 subsection (D) of the Great Eastern Railway (General Powers) Act 1900;

is hereby further extended for a period of three years from the thirtieth day of July one thousand nine hundred and twelve.

**35.** Section 16 of the Act of 1865 shall be read and have effect as if the sum mentioned therein as being the sum which the Company might lawfully take by way of toll rate or due for every person using the Lowestoft pier for every time such person shall go on to the same except on regatta or fête days had been twopence instead of one penny. Increase of Lowestoft pier toll.



A.D. 1912.

Alteration of  
rates in re-  
spect of  
Lowestoft  
harbour.

**36.** Schedule (B) to the Act of 1865 shall be read and have effect as follows (that is to say):—

(A) As if from the portion of the said schedule relating to harbour dues &c. the following words and figures had been omitted (namely):—

|                                     | £ | s. | d. |
|-------------------------------------|---|----|----|
| On pilot cutters and fishing smacks |   |    |    |
| per ton - - - - -                   | 0 | 0  | 2  |
| Or on ditto clearing by the year -  | 1 | 10 | 0  |
| On fishing luggers per ton - - -    | 0 | 0  | 1½ |
| Or on ditto clearing by the year -  | 1 | 0  | 0  |

and (B) As if in lieu of the said words and figures so omitted the following words and figures had been inserted in such portion of the said schedule (namely):—

|                                                                                                                                                                                                                    | £ | s. | d. |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---|----|----|
| On trawling smacks steam trawlers<br>steam drifters and motor fishing<br>boats per register ton (with a mini-<br>mum charge in each case of two<br>shillings and sixpence) - - -                                   | 0 | 0  | 2  |
| Or on ditto clearing by the year -                                                                                                                                                                                 | 1 | 10 | 0  |
| On sailing fishing drift boats and<br>fishing luggers (including those fitted<br>with auxiliary motor power) per<br>register ton (with a minimum charge<br>in each case of one shilling and<br>sixpence) - - - - - | 0 | 0  | 1½ |
| Or on ditto clearing by the year -                                                                                                                                                                                 | 1 | 0  | 0  |
| On tugs or other vessels perform-<br>ing towage per register ton (with a<br>minimum charge in each case of<br>ten shillings) - - - - -                                                                             | 0 | 2  | 6  |

Extending  
time for sale  
of super-  
fluous lands  
of Company.

**37.** Notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 (hereinafter referred to as "the Act of 1845") or in any Act which relates to the Company or to any other company whose undertaking is leased to the Company and which incorporates the Act of 1845 the periods for and within which the Company or any such other company may hold sell and dispose of any lands acquired before the passing of this Act and which either before or after the passing of this Act have or shall become superfluous within the meaning of section 127 of the Act of 1845 are hereby extended



to the thirty-first day of August one thousand nine hundred and twenty-eight but this section shall not operate so as to shorten the period for and within which the Company or any such other company as aforesaid were immediately prior to the passing of this Act entitled to hold sell and dispose of any such lands. A.D. 1912.

**38.** Notwithstanding anything contained in the Act of 1845 or in any Act which relates to the Great Northern and Great Eastern joint committee and which incorporates the Act of 1845 the periods for and within which the Great Northern and Great Eastern joint committee may hold sell and dispose of any lands acquired before the passing of this Act and which either before or after the passing of this Act have or shall become superfluous within the meaning of section 127 of the Act of 1845 are hereby extended to the thirty-first day of August one thousand nine hundred and twenty-eight but this section shall not operate so as to shorten the period for and within which the Great Northern and Great Eastern joint committee were immediately prior to the passing of this Act entitled to hold sell and dispose of any such lands. Extending time for sale of superfluous lands of certain joint committees and others.

The provisions of this section shall also extend and apply to the Midland and Great Eastern Railway Companies in respect of lands held by them as joint owners of the Tottenham and Hampstead Junction Railway and to the Norfolk and Suffolk joint railways committee respectively as if those companies and that joint committee respectively had been referred to in this section in addition to the Great Northern and Great Eastern joint committee.

**39.**—(1) The Middlesex agreement as set out in the Second Schedule to this Act is hereby confirmed and made binding upon the parties thereto and may and shall be carried into effect accordingly. Confirmation of Middlesex agreement.

(2) In accordance with the terms of the Middlesex agreement the Company may sell to the Middlesex Council and the Middlesex Council may purchase an easement or right of user of the said lands in the said parish of Enfield referred to in the Middlesex agreement. Sale of easement.

(3) The widening of the railway bridge and the reconstruction of the embankments or retaining walls in support thereof as the same have been completed by the Company and the widening of the approaches to such bridge to a width of fifty Confirming widening of bridge.



[Ch. xxxvii.] *Great Eastern Railway Act, 1912.* [2 & 3 GEO. 5.]

A.D. 1912. feet by the Middlesex Council are hereby sanctioned and confirmed and such widening and works shall be deemed to have been lawfully made or executed.

Confirming  
payments by  
Middlesex  
Council.

(4) The payment to the Company by the Middlesex Council of the cost of the said widening and works and of the costs charges and expenses of the Company in relation to the Middlesex agreement or otherwise as provided by the said agreement is hereby sanctioned and confirmed and such payment shall be deemed to be one of the purposes of the Order of 1906 for which the Middlesex Council were by that Order authorised to borrow money.

Sale of lands  
at Norwich.

40. Notwithstanding anything contained in any Acts relating to the Company or the Acts incorporated therewith the Company may sell to the limited company subject to a condition for the repurchase thereof by the Company in the event of such lands being at any time required for purposes connected with the Company's railway certain lands situate at Trowse in the city of Norwich in the county of Norfolk containing by admeasurement one thousand and eighty-seven square yards or thereabouts in the occupation of the limited company and now used as a seed warehouse and being portions of lands leased by the Company to the limited company by the said indenture of lease dated the first day of February one thousand eight hundred and ninety-six and to Messrs. J. and J. Colman the predecessors in title of the limited company by the said agreement dated the twenty-eighth day of October one thousand eight hundred and sixty-nine and the Company and the limited company may enter into and give effect to agreements for such purposes.

Confirming  
East London  
agreement.

41. The East London agreement (as set out in the Third Schedule to this Act) is hereby confirmed and made binding upon the parties thereto and the same may and shall be carried into effect accordingly.

East London  
Railway may  
be worked by  
electrical  
power.

42. Subject to the provisions of this Act and of the East London agreement the lessee companies or the joint committee may at any time work by electrical power the traffic on the East London Railway or any part thereof and for that purpose may lay down erect maintain and use electric cables conductors mains wires posts brackets tubes transformer stations lifts and apparatus necessary or convenient for such working and the lessee companies or the joint committee may make such alterations in the



East London Railway and in any stations and works connected therewith as may be necessary to adapt the same for working by electrical power: A.D. 1912.

Provided that any works carried out in pursuance of this section shall be subject to the provisions of sections 4 to 6 of the Regulation of Railways Act 1842 as extended by section 5 of the Regulation of Railways Act 1871 Provided also that the lessee companies or the joint committee shall not in laying down any electric cables conductors mains wires tubes or apparatus break up the surface of any street in the administrative county of London except under such conditions and subject to such requirements as the London County Council may reasonably impose.

**43.** The lessee companies or the joint committee on the one hand and the District Company and the London Electric Railway Company or either of such companies or any other company authority or person authorised to supply use or distribute electrical energy or power in any district in which may be situate any part of the East London Railway (in this section called "authorised undertakers") on the other hand may enter into and fulfil contracts and agreements for the supply to the lessee companies or any of them or to the joint committee by such companies company or authorised undertakers of the electrical energy or power required for the working of the East London Railway whether such railway is or is not partly situate beyond the area of supply (if any) of such authorised undertakers. Power to agree as to supply of electrical energy.

**44.** If and when the lessee companies or any of them shall seek to exercise their powers under the provisions of subsection (6) of section 8 of the London Brighton and South Coast Railway Act 1898 regard shall be had to all the circumstances of the case including the electrification of the East London Railway by the lessee companies under this Act and the arbitrator to whom the matter may be referred shall take into consideration whether and if so to what extent the cost of any additional accommodation and conveniences shall be borne by the lessee companies. For protection of London Brighton and South Coast Railway Company.

**45.** Notwithstanding anything contained in this Act or in any agreement scheduled hereto nothing shall prejudice or affect the existing rights of user by the lessee companies of the East London Railway by means of steam traction or otherwise and notwithstanding also anything contained in any Act of Parliament As to rights of lessee companies to use steam traction or electrical power on



A.D. 1912. to the contrary the lessee companies or any or either of them shall be at liberty to work over the East London Railway by means of electrical power.

East London  
Railway.

Section 15 of the Great Eastern Railway Act 1903 and section 7 of the South Eastern and London Chatham and Dover Railways Act 1903 are hereby repealed.

As to construction of works on lands of lessee companies.

46. Any works in connection with the electrification of the East London Railway that may have to be carried out on the property of any of the lessee companies shall be carried out thereon only in accordance with plans and specifications prepared by the engineers referred to in Article 1 of the East London agreement and approved by the lessee company on whose property such works may have to be carried out (such approval not to be unreasonably withheld) and such works shall be carried out under the supervision and to the reasonable approval of such lessee company's engineer and upon such terms as shall be agreed upon between such lessee company and the other lessee companies or failing agreement as shall be determined by arbitration in manner provided in the East London agreement and any extra cost of maintenance caused to such lessee company by such electrification shall be borne by the lessee companies.

For protection of London County Council.

47. The following provisions shall unless otherwise agreed apply and have effect for the protection of the London County Council (in this section called "the council") (that is to say):—

- (1) The expression "the lessee companies" used in this section shall include the joint committee :
- (2) The lessee companies shall not under the powers of this Act without the consent of the council erect or maintain any transformer station beyond the general line of buildings in any street part of a street place or row of houses in the administrative county of London (in this section called "the county") :
- (3) If under the powers of this Act the lessee companies construct or reconstruct above the street level any station buildings in the county the entrances to and exits from such station buildings shall be so designed and of such extent as to secure the least practicable inconvenience to the public traffic in the adjoining streets and before such works are commenced plans thereof showing the entrances and exits at street level shall be submitted for the reasonable approval of the council :



If the council shall not within twenty-eight days after the said plans shall have been submitted to them object to the same by notice in writing served upon the lessee companies the said plans shall be deemed to have been approved for the purposes of this Act and if the council make any such objection then unless the said plans be agreed between the lessee companies and the council within twenty-one days after the service of such objection any matter in difference shall be settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

48. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages:—

Provisions as to use of electrical power.

- (1) The undertakers shall employ either insulated returns or uninsulated metallic returns of low resistance:
- (2) The undertakers shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus:
- (3) The electrical power shall be used only in accordance with any regulations to be prescribed by the Board of Trade (hereinafter in this Act referred to as "the Board of Trade regulations") and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return:
- (4) The undertakers shall be deemed to take all reasonable and proper precautions against interference with the



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working of any wire ~~line~~ or apparatus if and so long as they adopt and employ at the option of the undertakers either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking:

- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wires lines or apparatus or the currents therein unless in the construction erection maintaining and working of such wires lines and apparatus all reasonable and proper precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents:
- (6) If any difference arises between the undertakers and any other party with respect to anything in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be:
- (7) The undertakers using electrical power contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be subject to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence continues after conviction thereof. Provided always that whether any such penalty has been recovered or not the Board of Trade if in their opinion the undertakers in the use of electrical power under the authority of this Act have made default in complying with the provisions of this Act or the



Board of Trade regulations may by order direct the undertakers to cease to use electrical power and thereupon the undertakers shall cease to use electrical power and shall not again use the same unless with the authority of the Board of Trade and in every such case the Board of Trade shall make a special report to Parliament notifying the making of such order : A.D. 1912.

- (8) The expression "undertakers" in this section includes licencees and any person owning working or running carriages over the East London Railway.

49. In the event of the traffic on the East London Railway or any part thereof being worked by electrical power the following provisions shall have effect:— For protection of Postmaster-General.

- (1) The undertakers shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the undertakers as to compliance with this subsection shall be determined by arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the undertakers of their electric lines and works or by the working of the undertaking of the undertakers the undertakers shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the East London Railway or the traffic thereon by electrical power is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the undertakers or their agents not more than twenty-eight nor less than



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fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the undertakers and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the undertakers as to any requirement so made shall be determined by arbitration:

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the undertakers is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the undertakers' works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the undertakers enter any of the undertakers' works for the purpose of inspecting the undertakers' plant and the working of the same and the undertakers shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the undertakers pursuant to the Board of Trade regulations:
- (5) In the event of any contravention of or wilful non-compliance with this section by the undertakers or their agents the undertakers shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues:
- (6) Provided that nothing in this section shall subject the undertakers or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the



penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice: A.D. 1912.

- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work:
- (8) For the purposes of this section and subject as therein provided sections two ten eleven and twelve of the Telegraph Act 1878 shall be deemed to be incorporated with this Act:
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882:
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections thirty to thirty-two both inclusive of the Regulation of Railways Act 1868 shall apply to any such arbitration:
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the undertakers by indictment action or otherwise in relation to any of the matters aforesaid:
- (12) In this section the expression "the undertakers" includes their lessees and any person owning working or running carriages on the East London Railway or supplying electrical energy or power for the working thereof.

50. If the Admiralty are of opinion that the generation or use of electrical energy under or for the purposes of this Act by the undertakers injuriously affects or is likely to injuriously affect any instrument or apparatus in or adjacent to the Royal Observatory at Greenwich including the magnetic pavilion or

For protection of Royal Observatory Greenwich.



[Ch. xxxvii.] *Great Eastern Railway Act, 1912.* [2 & 3 GEO. 5.]

A.D. 1912. the efficient working of such instrument or apparatus the Admiralty may after such inspection and inquiry as they think proper require that the undertakers shall use such precautions including insulated returns as the Admiralty may deem necessary for the prevention of such injurious affection and the undertakers shall forthwith comply with such requisition. For the purpose of this section any person authorised in writing by the Admiralty shall have access at all reasonable times to the works and apparatus of the undertakers who shall give all due facilities for the inspection. Provided always that in the event of any instrument or apparatus hereafter used in the said observatory which may be of a different character and of materially greater delicacy than those used therein at the passing of this Act the Admiralty shall consider and may in their discretion determine to what extent the powers of this section should be exercised regard being had to the interests of the public as well as to the purposes of the instruments or apparatus as the case may be. The Admiralty Suits Act 1868 shall apply for the purposes of proceedings in regard to any breach of the provisions of this section or for injurious affection of the said observatory or instruments or apparatus.

Power to directors of Company to create and issue debenture stock for purposes of East London agreement.

**51.—(1)** For the purposes of the electrification of the East London Railway and otherwise for the purposes of the East London agreement the directors of the Company may notwithstanding the provisions of the Companies Clauses Consolidation Act 1845 or the Companies Clauses Act 1863 as amended by any subsequent Act or of any other Act and without any further or other authority than is given by this section create and issue such an amount of four per centum debenture stock of the Company as may be sufficient to raise a sum not exceeding ninety thousand pounds and the directors of the Company shall pay the money so to be raised as and when received by them to the joint committee and the joint committee shall apply the same for the purposes of and in manner provided by the East London agreement.

The debenture stock so to be created and issued under the powers of this section shall be in addition to and shall form one class with the general four per centum debenture stock of the Company created or to be created by the Company or by the directors of the Company under the powers of this or any other Act of Parliament or any Order having the force of an Act of Parliament by which they are or may be authorised to create and issue debenture stock. and such debenture stock when



issued shall rank *pari passu* with and be subject to the same provisions and regulations in all respects as the general debenture stock of the Company. A.D. 1912.

(2) A sum equal to the interest at four pounds per centum per annum on the debenture stock of the Company which shall be created and issued by the directors of the Company under the powers of this section shall be paid to the Company by the lessee companies (including the Company) half-yearly as from the date of the issue of such stock rateably and in the same proportions in which the rent under the East London lease and the expenses of the joint committee are for the time being borne and payable by the lessee companies by virtue of section 50 of the Act of 1882 and the payment to the Company by the lessee companies other than the Company of their respective proportions of such sum shall be deemed to be by this Act guaranteed by such companies who shall indemnify the Company in respect of the same. Payment of interest on debenture stock by lessee companies.

(3) Notwithstanding anything to the contrary contained in section 39 of the Act of 1882 or in any Act relating to the East London Company or in the East London lease in every year after the East London Company shall have received the minimum rent or sum of thirty thousand pounds under the said lease any additional sum by way of rent which would under the provisions of the said section and lease be otherwise payable to the East London Company shall be applied by the joint committee in the first place in or towards repayment to the lessee companies (including the Company) of such sum in respect of interest on the debenture stock of the Company which shall have been created and issued under the powers of this section as shall have been paid by those companies respectively in such year or in any previous year in accordance with the provisions of subsection (2) of this section so long as any such sum in respect of interest shall not have been made good to the lessee companies together with interest thereon at the rate of four per centum per annum and the residue (if any) of such additional sum shall be paid to the East London Company in accordance with the provisions of the said section 39 and of the said lease. Application by joint committee of sums received beyond minimum rent.

(4) Section 39 of the Act of 1882 shall be read and have effect as if the proviso thereto (relating to the revision by arbitration of the proportion of the gross annual receipts from the traffic of the East London Railway to be deducted or allowed for working expenses) had been omitted therefrom. Amendment of section 39 of Act of 1882.



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Power for  
Company to  
raise addi-  
tional  
capital.

**52.**—(1) The Company in addition to any other sums which they are by this Act authorised to raise may for the purpose of raising additional sums of money for the purposes of this Act and of any of their existing Acts and for other purposes of their undertaking from time to time create and issue shares or stock not exceeding in the whole in nominal amount one million pounds and such shares or stock may be either wholly or partly preference shares or preference stock or wholly or partly ordinary shares or ordinary stock and with any fixed fluctuating contingent preferential perpetual terminable deferred or other dividend or interest and with or without provision for the amalgamation of any such shares or stock with the ordinary stock for the time being of the Company And the provisions contained in section 78 of the Great Eastern Railway Act 1876 shall be applicable with respect to any shares or stock which may be created and sections 81 and 82 of the said Act shall also be applicable with respect to any shares so created.

Shares or  
stock to form  
part of Com-  
pany's general  
capital.

(2) All shares or stock created by the Company under this section shall subject to the provisions of this Act form part of the general capital of the Company.

Power to  
borrow on  
mortgage.

**53.** The Company may in respect of the additional capital of one million pounds which they are by this Act authorised to raise by the creation and issue of shares or stock from time to time borrow on mortgage of their undertaking such sums as they think fit not exceeding in the whole three hundred and thirty-three thousand three hundred and thirty-three pounds (that is to say) When one hundred and fifty thousand pounds in respect of such additional capital has been bonâ fide paid up and certified as hereinafter mentioned they may borrow on mortgage any sum of money not exceeding fifty thousand pounds and a like additional sum of fifty thousand pounds when every further sum of one hundred and fifty thousand pounds up to nine hundred thousand pounds has been bonâ fide paid up and certified as hereinafter mentioned and the balance of thirty-three thousand three hundred and thirty-three pounds when the remaining one hundred thousand pounds of capital has been bonâ fide paid up and certified as hereinafter mentioned but no such borrowing powers shall be exercised by the Company until they shall prove to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares or stock for raising such additional capital or some part thereof have been bonâ fide paid



up to the extent in money of one hundred and fifty thousand pounds or one hundred thousand pounds as the case may be in respect of every sum of fifty thousand pounds or of the balance of thirty-three thousand three hundred and thirty-three pounds as the case may be intended to be borrowed and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proofs aforesaid have been given which certificate shall be sufficient evidence thereof.

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**54.** All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Existing mortgages to have priority.

**55.** The provisions of all former Acts relating to the Company authorising the appointment of a receiver for principal or interest moneys due upon any mortgages of the Company are hereby repealed but subject and without prejudice to any appointment of a receiver or proceedings taken under or by virtue of such appointment and in force or pending at the time of the passing of this Act.

Repealing provisions of former Acts for appointment of a receiver.

**56.** The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

For appointment of a receiver.

**57.** The Company may create and issue debenture stock to the same nominal amount as they are by this Act authorised from time to time to borrow on mortgage subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by subsequent Acts but notwithstanding anything therein contained the interest of all debenture stock at any time after the passing of this Act created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any

Debenture stock.



A.D. 1912. — time after the passing of this Act granted by the Company and shall have priority over all principal moneys secured by such mortgages.

Application  
of capital  
under Act.

**58.** All moneys raised under this Act whether by shares stock mortgages or debenture stock shall be applied only to the purposes authorised by this Act or by any other Act or Acts relating to the Company passed or to be passed during the present or any previous session of Parliament and to the general purposes of the undertaking of the Company being in each case purposes to which capital is properly applicable.

Power to  
apply exist-  
ing funds.

**59.** The Company the Brighton Company the Metropolitan Company the District Company the South Eastern Company the Chatham Company and the Great Northern and Great Eastern joint committee may respectively raise and apply for or towards any of the purposes of this Act relating to them respectively to which capital is properly applicable any money which they are respectively authorised to raise by any other Act or Acts or Order and which may not be required for the special purposes (if any) for which that money was authorised to be raised.

As to voting.

**60.** The holder of any ordinary or preference shares or stock of the Company which may be issued under this Act shall be entitled to vote in respect thereof at meetings of the Company according to the following scale and not otherwise (that is to say) :—

In respect of ordinary shares or stock—

One vote for each one hundred pounds of nominal amount of shares or stock or of shares and stock combined ;

In respect of preference shares or stock—

One vote for each two hundred pounds of nominal amount of shares or stock or of shares and stock combined ;

but no person shall be entitled to vote for any less amount than one hundred pounds or two hundred pounds as the case may be of nominal amount of any shares or stock and no proprietor of any such shares or stock shall be entitled to vote at any meeting of the Company in respect of any such shares or stock which shall not have been registered in his name in the books of the Company for a period of one month at least prior to the meeting.



**61.** Notwithstanding anything contained in any Act relating to the Company or any Act incorporated therewith or with this Act relating to the creation and issue by the Company of debenture stock it shall be lawful for the directors of the Company without any further authority than is contained in this section to create and issue debenture stock of the Company to such amounts and at such times as the directors may determine for the purpose of the investment of the contributions of the members of the new superannuation fund (established under the provisions of section 42 of the Act of 1897) and of the new pension fund and of the new pension supplemental fund respectively (established under the provisions of the Pensions Act 1898) And such debenture stock when issued for such purpose shall be in addition to and shall rank *pari passu* with and be subject to the same provisions and regulations in all respects as the general debenture stock of the Company created or to be created by the Company or by the directors of the Company under the powers of this Act or any other Act of Parliament or any Order having the force of an Act of Parliament.

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Power to directors of Company to create and issue debenture stock for purposes of investment therein of superannuation and pension funds.

**62.** The Company may with respect to the whole or any portion of fully paid up stock or share capital or debenture stock created or to be created by them and subject to such regulations as may from time to time be made by the Company issue under their common seal warrants and certificates (hereinafter severally referred to as a "stock warrant to bearer" and a "debenture stock certificate to bearer") stating that the bearer of the warrant or certificate is entitled to the stock or shares or the debenture stock (as the case may be) therein specified and may provide by coupons whether attached to the warrant or certificate or not for the payment of dividends or interest as the case may be on the stock or shares or debenture stock specified in the warrant or certificate:

Power to issue stock or share warrants and debenture stock certificates to bearer.

Provided always that nothing in this Act contained shall empower the Company to issue to the holder of any stock shares or debenture stock issued prior to the passing of this Act a stock warrant to bearer or a debenture stock certificate to bearer (as the case may be) for such stock shares or debenture stock without first obtaining his consent in writing.

**63.** A stock warrant to bearer or debenture stock certificate to bearer shall entitle the bearer thereof to the stock or shares

Effect of stock warrant and de-



A.D. 1912.

debenture stock  
certificate to  
bearer.

Entries in  
register on  
issue of stock  
warrant or  
debenture  
stock cer-  
tificate to  
bearer.

or debenture stock therein specified and such stock shares or debenture stock may be transferred by delivery of the warrant or certificate but not otherwise.

**64.** On the issue of a stock warrant to bearer or a debenture stock certificate to bearer in respect of any portion of stock or share capital or debenture stock the Company instead of making in the register of shareholders or shareholders' address book or in the register of stockholders or of debenture stock holders with reference to such portion of stock or share capital or debenture stock the entries provided for by sections 9 10 or 63 of the Companies Clauses Consolidation Act 1845 or by section 28 of the Companies Clauses Act 1863 shall strike out of such register of shareholders shareholders' address book or register of stockholders or of debenture stock holders (as the case may be) the name of the person (if any) then entered therein as holding such stock shares or debenture stock (as the case may be) and the other particulars with reference to such stock shares or debenture stock contained in such register or address book and shall enter in the register the following particulars:—

(i) The fact of the issue of the stock warrant to bearer or debenture stock certificate to bearer;

(ii) A statement of the amount of the portion of stock or share capital or debenture stock (as the case may be) specified in the warrant or certificate;

(iii) The date of the issue of the warrant or certificate.

The provisions of the Companies Clauses Consolidation Act 1845 as to the register of holders of shares and as to certificates of shares and transfer and transmission of shares and of the Companies Clauses Act 1863 as to certificates and registration of debenture stock shall not apply in the case of a stock warrant to bearer or a debenture stock certificate to bearer respectively.

Registration  
of holders of  
stock shares  
or debenture  
stock on  
surrender of  
warrant or  
certificate.

**65.** The bearer of a stock warrant to bearer or a debenture stock certificate to bearer shall on—

(A) surrendering for cancellation the warrant or certificate with all coupons issued in respect thereof and for the time being outstanding;

(B) complying with such regulations as may from time to time be made by the Company for the purpose of enabling the Company to ascertain the name address



and description of the bearer and for obtaining a specimen of his signature; A.D. 1912.

(c) paying to the Company all stamp or other Government duties (if any) which may be payable by the Company in consequence of the surrender; and

(D) paying to the Company such fee as the Company may prescribe not exceeding five shillings;

be entitled to have his name entered in the register of stockholders or shareholders or in the register of debenture stock holders (as the case may be) and the Company shall be responsible for any loss incurred by any person by reason of the Company entering in the register the name of any bearer of a stock warrant to bearer or a debenture stock certificate to bearer in respect of the portion of stock or share capital or debenture stock therein specified without the warrant or certificate with coupons as aforesaid being surrendered and cancelled.

**66.** The bearer of a stock warrant to bearer shall subject to the provisions of this Act be deemed to be a stockholder or shareholder of the Company for all purposes. Provided that the stock or shares specified in a stock warrant to bearer shall not be taken into account in determining the qualification of the bearer of such warrant to be a director of the Company. As to rights of holders of stock warrants to bearer.

**67.—(1)** Any bearer of a stock warrant to bearer desiring— Voting certificates.

(A) to attend or vote (whether personally or by proxy) or exercise any of the rights of a stockholder or shareholder at any meeting of the Company; or

(B) to make or be a party to making a requisition for an extraordinary meeting of the Company

in respect of the stock or shares specified in such warrant shall three days at least before the date appointed for the meeting in the first case and before the requisition is lodged at the office of the Company in the second case deposit such stock warrant at the office of the Company together with a statement in writing of his name and address.

(2) Upon such deposit as aforesaid being made the Company shall issue to the person making the same a certificate (hereinafter referred to as a "voting certificate") stating the name and address of the bearer of the stock warrant to bearer so deposited or (at his option) of some person (being a stockholder or shareholder of the Company) to be nominated by him as his



A.D. 1912. — proxy and the amount of stock or the number of shares specified in such warrant.

(3) A voting certificate shall entitle the person named therein—

(A) to attend and vote and exercise any of the rights of a stockholder or shareholder at any meeting of the Company held while such voting certificate shall be outstanding; and

(B) to make or be a party to making a requisition for an extraordinary meeting of the Company or to call or be a party to calling an extraordinary meeting of the Company

in like manner in all respects as if such person were the registered holder of the stock or shares specified in the voting certificate but no such rights as aforesaid shall be exercised in respect of the stock or shares specified in a stock warrant to bearer otherwise than in accordance with the provisions of this section or except—

(i) while the voting certificate issued upon the deposit of such stock warrant shall be outstanding; and

(ii) upon production of such voting certificate whenever so required by a director or officer of the Company.

(4) Upon the surrender to the Company at any time of a voting certificate the Company shall deliver up to the person surrendering such certificate the stock warrant to bearer in respect of which such voting certificate was issued and shall forthwith effectually cancel such voting certificate but until such surrender any stock warrant to bearer deposited with the Company pursuant to the provisions of this section shall remain so deposited and during such period of deposit the Company shall be responsible for the loss of or any damage to such stock warrant to bearer.

(5) Except as expressly provided by this section a voting certificate shall not confer any rights upon the person named therein or other the holder thereof or be deemed to constitute any evidence as to the ownership of the stock or shares specified therein.

(6) The Company shall not be responsible for ascertaining that the holder of a stock warrant to bearer or of a voting certificate is lawfully entitled to the stock or shares specified in



such warrant or to such voting certificate or be liable to make good any loss incurred by any person by reason or in consequence of any such voting certificate being issued to the holder of any such warrant or of any such warrant being delivered up to the holder of any such voting certificate. A.D. 1912.

**68.** No person shall as bearer of any stock warrant to bearer be entitled to exercise any of the rights of a stockholder or shareholder of the Company (save as hereinbefore expressly provided in respect of meetings) without producing the warrant and stating his name and address. Stock warrants to be produced.

**69.** Any notice or intimation required to be given to stockholders or shareholders of the Company under the provisions of the Companies Clauses Consolidation Act 1845 or any Act amending the same or any other Act relating to the Company may in the case of the bearers of stock warrants to bearer be given by advertising the notice once in two newspapers published in London such advertisements to be inserted within the period (if any) prescribed for the giving of such notice. As to notices to bearers of stock warrants.

**70.** If and so often as any application shall be made to Parliament for an Act affecting the rights of the holders of any class of debenture stock which shall for the time being have been issued by the Company and be outstanding and in respect whereof or any part whereof debenture stock certificates to bearer shall be then outstanding the following provisions shall have effect (that is to say):— Provision in case of applications to Parliament affecting rights of holders of debenture stock.

(1) In this section the following expressions shall have the following meanings unless repugnant to the context:—

“The debenture stock” means the debenture stock of such class as last aforesaid for the time being issued and outstanding;

“Bearer certificates” means the debenture stock certificates to bearer for the time being issued in respect of the debenture stock or any part thereof and outstanding;

“The bearers” means the bearers for the time being of the bearer certificates and “bearer” means one of the bearers;

“Registered holders” means the registered holders for the time being of any debenture stock;



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“Meeting” means a meeting of registered holders and bearers under this section;

“Debenture voting certificate” means a voting certificate issued in pursuance of this section:

- (2) Any meeting convened for the purpose of approving any such application to Parliament as aforesaid or any Bill for such Act as aforesaid shall so far as the bearers are concerned be duly convened by advertising the notice convening the same once in two newspapers published in London and once in the same two newspapers in the next week following the publication of the first advertisement. Provided the same shall be convened for a date not less than fourteen days or more than thirty days after the last insertion of the advertisement thereof in such two newspapers. It shall also be lawful for but not obligatory on the Company to advertise such notice as last aforesaid in any other newspaper or newspapers either in the United Kingdom or abroad:

Every such advertisement as aforesaid shall state that the bearers may not less than forty-eight hours before the time for holding the meeting or any adjournment thereof deposit at the head office of the Company their bearer certificates and obtain debenture voting certificates in respect thereof:

- (3) At a meeting or any adjournment thereof the bearer of a bearer certificate shall be treated as a legal holder thereof whether such bearer shall or shall not be the owner thereof and for all the purposes of the meeting or any adjournment thereof the bearer of a debenture voting certificate issued under this section in respect of a bearer certificate shall be deemed to be the bearer of such bearer certificate:
- (4) Prior to convening a meeting the Company shall make such arrangements as will entitle any bearer who shall not less than forty-eight hours before the time for holding such meeting or any adjournment thereof deposit a bearer certificate at the head office of the Company to receive from the Company—

(A) A receipt for the bearer certificate so deposited such receipt to be in such form as



(subject to the provisions of the next succeeding subsection) will entitle the bearer thereof to have the bearer certificate in respect of which the same was given delivered to him in exchange therefor by the Company whether such bearer be or be not in fact the true owner of such bearer certificate; and

A.D. 1912.

(B) A debenture voting certificate;

which receipt and debenture voting certificate shall be signed by the secretary or manager of the Company and shall specify the denoting number of the bearer certificate so deposited and the amount of the debenture stock comprised therein. A debenture voting certificate shall not except as provided by subsection (3) of this section confer any title on the holder thereof to the bearer certificate or to the debenture stock referred to therein:

- (5) A bearer certificate deposited as last aforesaid shall be deposited subject to (amongst others) the condition that the same shall be retained by the Company until the meeting has been held or abandoned or until the receipt given by the Company therefor and the debenture voting certificate issued by the Company in respect thereof shall be delivered to the Company whichever shall be the earlier.

**71.** If a stock warrant to bearer or debenture stock certificate to bearer or coupon or voting certificate is lost or destroyed then upon—

Loss or destruction of warrant certificate coupon or voting certificate.

- (A) Proof to the satisfaction of the directors of the ownership of such lost or destroyed warrant or debenture stock certificate or coupon or voting certificate and of the loss or destruction thereof;

- (B) The giving of such indemnity to the Company and the directors as the directors deem adequate;

- (C) Payment of all stamp and other Government duties (if any) payable in respect of the new warrant or certificate or coupon; and

- (D) Payment to the Company of a fee of five shillings;

a new stock warrant to bearer or debenture stock certificate to bearer or coupon or voting certificate as the case may be in



A.D. 1912. lieu of the warrant debenture stock certificate coupon or voting certificate so lost or destroyed shall be issued by the Company and in the case of the issue of a new stock warrant to bearer or debenture stock certificate to bearer or coupon an entry of such issue shall be made by the secretary in the register of stockholders or shareholders or register of debenture stock holders.

As to joint holders.

**72.** If several persons be or claim to be jointly entitled to the stock or shares or debenture stock specified in a stock warrant to bearer or debenture stock certificate to bearer then as between the Company on the one hand and such persons on the other hand—

(A) one only of such persons shall be deemed the sole proprietor of such stock or shares or debenture stock; and

(B) in case of any dispute between such persons such one of them as shall be the actual holder of the stock warrant to bearer or debenture stock certificate to bearer shall be deemed such sole proprietor.

Trustees unless expressly authorised not empowered to hold bearer securities.

**73.** A trustee unless authorised by the terms of his trust shall not apply for or hold a stock warrant to bearer or debenture stock certificate to bearer issued under the authority of this Act but nothing in this section shall impose upon the Company any obligation to inquire whether the person applying for a stock warrant to bearer or debenture stock certificate to bearer is or is not a trustee or being a trustee is or is not so authorised as aforesaid or subject them to any liability in the event of their issuing to a trustee a stock warrant to bearer or debenture stock certificate to bearer.

Endorsement of provisions on warrants and certificates to bearer.

**74.** A copy of the sections of this Act of which the marginal notes are respectively "Registration of holders of stock shares or debenture stock on surrender of warrant or certificate" "Voting certificates" and "As to notices to bearers of stock warrants" shall be endorsed on every stock warrant to bearer and a copy of the said section of this Act of which the marginal note is "Registration of holders of stock shares or debenture stock on surrender of warrant or certificate" and of the section of this Act of which the marginal note is "Provision in case of applications to Parliament affecting rights of holders of debenture stock" shall be endorsed on every debenture stock certificate to bearer which shall be issued by the Company.



**75.** Subsection (4) of section 50 of the Great Eastern Railway (General Powers) Act 1878 shall be read and have effect as if in paragraph (E) the first day of July had been substituted for the first April and the thirty-first day of March for the thirty-first December and any existing rules made under such subsection shall be read and have effect accordingly. Provided that in respect of the period of fifteen months ending the thirty-first day of March one thousand nine hundred and thirteen (in this section called "the extended period") notwithstanding anything contained in the said section or existing rules made thereunder the accounts of any savings bank established by the Company and the general statement of receipts and expenditure funds and effects of any such savings bank as audited may be balanced and made out for the extended period and sent to the Registrar of Friendly Societies on or before the first day of July one thousand nine hundred and thirteen.

A.D. 1912.  
Savings  
bank ac-  
counts.

**76.** Notwithstanding anything contained in the Great Eastern Railway Act 1862 or any other Act of or relating to the Company or in the Companies Clauses Consolidation Act 1845 the directors of the Company in office at the conclusion of the general half-yearly meeting of the Company held in July or August one thousand nine hundred and twelve shall while competent to act as such continue to be directors until the general meeting of the Company to be held in January or February one thousand nine hundred and fourteen and at that meeting and at the corresponding general meeting in every subsequent year one fourth of the directors for the time being as near as may be being those who shall then have been longest in office from the date of their election or last election as the case may be shall retire from office and the places of the retiring directors shall subject to the provisions of section 94 of the Great Eastern Railway Act 1862 or of any Act amending the same and of section 82 of the Companies Clauses Consolidation Act 1845 for increasing or reducing the number of directors of the Company be supplied by an equal number of qualified shareholders in manner provided by the Companies Clauses Consolidation Act 1845 nevertheless every director so retiring from office may be re-elected immediately or at any future time and after such re-election shall with reference to the going out of office by rotation be considered as a new director. In determining the date of election of any director who may have been elected to supply an occasional vacancy in

Temporary  
extension of  
period for  
retirement of  
directors.



A.D. 1912. — pursuance of section 89 of the Companies Clauses Consolidation Act 1845 the date of election of such director shall be deemed to be the date of election or last election of the director in whose place he was so elected. Provided always that if the existing number of directors be some number not divisible by four the directors shall in each case determine what number of directors as nearly one fourth as may be shall retire so that the whole number of the directors shall go out of office in four years. Provided also that as between persons who became directors on the same day those to retire shall (unless they otherwise agree among themselves) be determined by lot.

Auditors.

**77.**—(1) Notwithstanding anything contained in any Act of or relating to the Company or in the Companies Clauses Consolidation Act 1845 the auditors of the Company in office at the conclusion of the general half-yearly meeting of the Company held in July or August one thousand nine hundred and twelve shall while competent to act as such continue in office until the general meeting of the Company to be held in January or February one thousand nine hundred and fourteen and at that meeting and at the corresponding general meeting in every subsequent year one of such auditors being the auditor who has been longest in office since his last election shall retire from office and the Company shall elect an auditor to supply the place of the auditor then retiring from office.

The auditor so retiring from office shall be immediately eligible for re-election and after any such re-election shall with respect to the going out of office by rotation be deemed a new auditor.

(2) If any casual vacancy shall take place in the office of auditor the directors of the Company may appoint some duly qualified person to fill such vacancy but while such vacancy continues the surviving or continuing auditor (if any) may act:

Provided that the person appointed to fill such vacancy shall continue in office so long only as the person in whose place he shall have been appointed would have been entitled to continue if he had remained in office.

Crown  
rights.

**78.** Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or



any land hereditaments subjects or rights of whatever description belonging to His Majesty in right of his Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). A.D. 1912.

**79.** No interest shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him. But nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845. Interest not to be paid out of capital.

**80.** The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.

**81.** Nothing in this Act contained shall exempt any of the companies or joint committees upon whom powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies or joint committees respectively. Provision as to general Railway Acts.

**82.** The costs charges and expenses preliminary to and of and incidental to the preparing and applying for and the obtaining and passing of this Act shall be paid by the Company. Expenses of Act.



A.D. 1912. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY MAY BE  
REQUIRED TO BE TAKEN BY THE COMPANY.

| No. on<br>deposited<br>Plans.             | Parish or other Area.             | Description of Property.                              |
|-------------------------------------------|-----------------------------------|-------------------------------------------------------|
| WIDENING AND IMPROVEMENT (No. 1).         |                                   |                                                       |
| 5                                         | Urban district of North Walsham - | Plantation.                                           |
| WIDENING AND IMPROVEMENT (No. 3).         |                                   |                                                       |
| 15                                        | Urban district of Clacton - - -   | Field ditch and shed.                                 |
| 16                                        | Ditto - - - - -                   | Land.                                                 |
| 17                                        | Ditto - - - - -                   | Garden and sheds.                                     |
| 18                                        | Ditto - - - - -                   | Garden.                                               |
| 19                                        | Ditto - - - - -                   | Land.                                                 |
| 20                                        | Ditto - - - - -                   | Field.                                                |
| WIDENING AND IMPROVEMENT (No. 5).         |                                   |                                                       |
| 2                                         | County borough of Ipswich - -     | Garden.                                               |
| 3                                         | Ditto - - - - -                   | Garden and shed.                                      |
| 4                                         | Ditto - - - - -                   | Garden.                                               |
| 5                                         | Ditto - - - - -                   | Garden and shed.                                      |
| 6                                         | Ditto - - - - -                   | Garden and pond.                                      |
| 7                                         | Ditto - - - - -                   | Garden and pond.                                      |
| 8                                         | Ditto - - - - -                   | Garden.                                               |
| 9                                         | Ditto - - - - -                   | Garden.                                               |
| 10                                        | Ditto - - - - -                   | Garden.                                               |
| 11                                        | Ditto - - - - -                   | Garden and shed.                                      |
| 12                                        | Ditto - - - - -                   | Garden.                                               |
| ADDITIONAL LANDS AT ENFIELD TOWN STATION. |                                   |                                                       |
| 3                                         | Urban district of Enfield - - -   | Garden and summerhouse.                               |
| 4                                         | Ditto - - - - -                   | Garden and sheds.                                     |
| 5                                         | Ditto - - - - -                   | Yard garden ground and sheds<br>telegraph wires over. |



THE SECOND SCHEDULE.

A.D. 1912.

(THE MIDDLESEX AGREEMENT.)

AN AGREEMENT made the 11th day of May 1910 between THE GREAT EASTERN RAILWAY COMPANY (hereinafter called "the Company") of the one part and THE COUNTY COUNCIL OF THE ADMINISTRATIVE COUNTY OF MIDDLESEX (hereinafter called "the council") of the other part.

WHEREAS the Company are seised in fee simple of the pieces of land situate in the parish of Enfield in the county of Middlesex and shown on the Plan No. 36,893 annexed hereto and thereon respectively coloured pink and blue and hatched in red the said pieces of land coloured pink and blue and hatched in red partly forming the embankments supporting the road known as Southbury Road and the bridge respectively whereby such road is carried over the railways of the Company near Churchbury Station which bridge (hereinafter called "the railway bridge") with the approaches thereto is maintainable and repairable by the Company :

And whereas by an Order (hereinafter referred to as "the Order") made under the Light Railways Act 1896 and confirmed by the Board of Trade on the 16th day of March 1906 and intituled "The County of Middlesex (Waltham Cross and Enfield) Light Railways Order 1906" the council were authorised to make and maintain certain railways therein described (including a railway running along Southbury Road aforesaid and over the railway bridge) and to enter upon take and use such of the lands therein referred to as might be required for the purposes of the Order but as to lands of the Company not without the previous consent in writing of the Company :

And whereas the council required to use for the purposes of the railways and works authorised by the Order the said pieces of land respectively coloured pink and blue and hatched in red upon the said Plan No. 36,893 and it has been agreed that in lieu of a sale of the said pieces of land by the Company to the council the Company shall grant to the council such right of user thereof as is hereinafter mentioned upon the terms hereinafter appearing :

Now it is hereby agreed as follows :—

1. The Company (so far as they lawfully can or may) hereby agree to sell and the council hereby agree to purchase for the considerations upon the terms and subject to the conditions hereinafter expressed the perpetual right and liberty to enter upon and use the said pieces of land coloured pink and blue upon the said Plan No. 36,893 and upon so much or such parts of the said lands hatched



A.D. 1912. in red on the said plan as may be required for the construction of the works authorised by the Order and incidental thereto.

2. The consideration for the said sale shall be the sum of £1,500 and the covenants and agreements to be entered into by the council as hereinafter provided. The council having paid the sum of £1,200 to the Company upon the date hereof shall be at liberty to enter into possession of the said pieces of land at any time hereafter and shall pay the balance of £300 on the 26th day of May 1910 together with interest thereon at the rate of £3 per cent. from the date hereof until the date of payment.

3. The rates and taxes payable in respect of the said pieces of land will be discharged by the Company up to the date hereof as from which date all such rates and taxes (including any rates made but not demanded till after that date) shall be discharged by the council.

4. The Company shall deliver to the council an abstract of the conveyance to them of the lands in question but the council shall not be entitled to require any further evidence of the title of the Company or to investigate or make any requisition or objection with respect to the said title or with respect to the power of the Company to sell or grant the right hereby agreed to be sold upon the terms herein contained.

5. As further part of the consideration for the said sale the council shall at their own expense within the period of twelve calendar months from the date hereof execute and do the works and things specified in the schedule hereto to the entire satisfaction of the principal engineer for the time being of the Company (hereinafter called "the principal engineer") and in accordance with the plans sections and specifications which have been signed by Harry Jones on behalf of the Company and by Henry Titus Wakelam on behalf of the council and dated the 2nd day of May 1910 and with the provisions of the said schedule hereunder written and so that in case of any inconsistency between the said plans sections and specifications and the provisions of this agreement or the said schedule the last-mentioned provisions shall prevail.

6.—(1) The council shall immediately upon the exchange of the several parts of this agreement deposit with the Company the sum of £900 being the estimated amount of the costs of the works to be executed by the Company as hereinafter in this clause provided and of the costs charges and expenses incurred or to be incurred by the Company in relation to the negotiations for this agreement and the preparation perusal and execution thereof and (by way of anticipation) of the assurance to the council and the duplicate thereof (as hereinafter mentioned) and all other costs charges and expenses (including surveyors' and engineers' fees and law charges) of or incidental to the subject matter of this agreement.



(2) After the said deposit shall have been made the Company will at the cost in all respects of the council either by contractors employed for this purpose by the Company or by the engineers' staff of the Company or partly in one way and partly in the other (as the Company in their discretion may think fit) proceed to widen the railway bridge and works between the lines indicated on the said Plan No. 36,893 by the letters CC and DD and reconstruct or erect the embankments or retaining walls in support thereof in accordance with the drawings sections and specifications Nod. A14,943 and signed by John Wilson on behalf of the Company and by Henry Titus Wakelam on behalf of the council. A.D. 1912.

(3) As soon as the works hereinbefore in this clause referred to shall have been completed the principal engineer will issue a certificate of the actual amount of the cost of the said works (such cost to include the expense of plans and all office expenses and wages of the Company's engineers' staff during the time they are employed in relation to the said works and to include also 5 per cent. on the cost of the works for supervision) and also of the actual amount of such other costs charges and expenses hereinbefore in this clause referred to as shall have been incurred by the Company (and of the estimated costs of and in relation to the assurance and duplicate if not then already executed) and if the amount so certified shall be greater or less than the amount of the said deposit of £900 the difference shall be paid by the council to the Company or by the Company to the council as the case may require.

7. The council shall at their own expense under the supervision and to the satisfaction of the principal engineer from time to time cleanse and scour and for ever maintain in a thoroughly efficient state of repair and condition so much of the roadway (including footpaths) of Southbury Road (so widened as mentioned in the schedule hereto) as is situate on the railway bridge and approaches between the points marked A and B on the said Plan No. 36,893 and also the structure of the widened portion of the approaches to the said bridge between the same points and the structure of so much of the said approaches to the said bridge as will lie under and between the tramway rails and for the space of 18 inches on each outer side of such rails and the steps and other works to be constructed in accordance with this agreement other than the said bridge and works as herein provided and also the lamps to be provided by the council as mentioned in the said schedule and the posts thereof and keep the said lamps effectually lighted at all proper times and the council shall also from time to time pay to the Company forthwith on demand such reasonable and proper sums as shall from time to time be certified by the principal engineer as the certified costs reasonably and properly incurred or to be incurred by the Company on or in relation to the maintenance or repair of the widened portion of the railway bridge and the works



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A.D. 1912. in relation thereto between the lines indicated on the said Plan No. 36,893 by the letters DD and CC the said maintenance and repair being such as in the opinion of the principal engineer shall be deemed necessary.

8. The council shall at all times keep the Company indemnified against all actions proceedings costs expenses claims and demands whatsoever by reason or on account of any defect in the state of repair or maintenance (including cleansing and scouring) of the said roadway and the railway bridge and the approaches thereto (so far as the same respectively are to be cleansed scoured repaired and maintained by the council as aforesaid) or of any failure to keep the said lamps effectually lighted or by reason or on account of any of the works hereinbefore mentioned or of the user by the council of the said pieces of land or any part thereof for the purposes of the Order or by reason or on account of the grant of the said right or liberty by the Company to the council or any other matter or thing done in pursuance of or arising out of or connected with this agreement.

9. On completion of the works hereinbefore agreed to be executed by them the council shall be entitled at their own cost to a proper assurance of the right or liberty hereby agreed to be sold such assurance to be prepared by the council and a draft thereof to be previously submitted to the Company's solicitor for approval. The said assurance shall contain all such covenants and provisions as the Company shall reasonably require for carrying this agreement into effect and making the obligations of the council hereunder binding upon the council. The Company shall not be required to enter into or give any express or implied covenant for title or further assurance or otherwise in relation to the said pieces of land or to the said right or liberty. A duplicate of the said assurance shall be executed by the council and delivered to the Company.

10. The Company or the council shall whichever shall first make an application to Parliament for an omnibus Bill apply for and use their best endeavours to obtain the sanction of Parliament so as to confirm and give full effect to this agreement and the said assurance to be made in pursuance thereof and the Company or the council as the case may be will at the expense of the council adduce such evidence as may be at their disposal in support of the said application.

11. The certificate of the principal engineer as to any matter in respect of which he is hereby authorised or required to certify shall be final and conclusive and binding upon the parties hereto.

12. Nothing herein contained shall prejudice or diminish the force or effect of any provision for the benefit or protection of the Company



contained in the Order and the obligations hereby imposed on the council shall be in addition to and not in substitution for the obligations imposed on them by the Order. A.D. 1912.

In witness whereof the Company and the council have caused their respective common seals to be hereunto affixed the day and year first above written.

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The SCHEDULE above referred to.

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Works to be executed by the above-named council as mentioned in clause 5 of the above-written agreement:—

- (A) They shall widen Southbury Road aforesaid between the points marked A and the line DD and the line CC and B on the said Plan No. 36,893 so that it shall be of a width between the fences or boundaries thereof (including any footpaths) of 50 feet at the least:
- (B) They shall take down and hand over to the Company the whole of the existing wooden approach fences on both sides of the roadway between the points marked A and B on the said plan and erect in lieu thereof iron unclimbable fencing 5 feet high suitable for fixing on an earth embankment or retaining wall the same to be painted with four coats of oil colour:
- (C) They shall at the points marked R T and S on the said plan provide and fix unclimbable iron gates of a width equal to the width of the existing openings and of a similar type and height to the above-mentioned iron fencing (the same to be fitted with proper fastenings as may be required by the principal engineer) and at the points marked P and Q take down and refix the existing gates to suit the new openings and make good the iron fencing and paint all gates with four coats of oil colour:
- (D) They shall at the points marked P and Q lay pitched crossings on 6-inch concrete of the same width as the footway:
- (E) They shall make up the said widened road in all particulars to the standard of the local authority and take up the existing 12-inch by 6-inch granite kerb of the footpath and hand over the same to the Company The footpath under the area covered by the station awning to be approved 3-inch stone paving on 6-inch concrete:
- (F) They shall within the period aforesaid hand over to the Company all lamps belonging to the Company which may be taken down in the course of the works and provide



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and fix in such positions as the principal engineer shall approve all such new lamps as may be required to properly light the road:

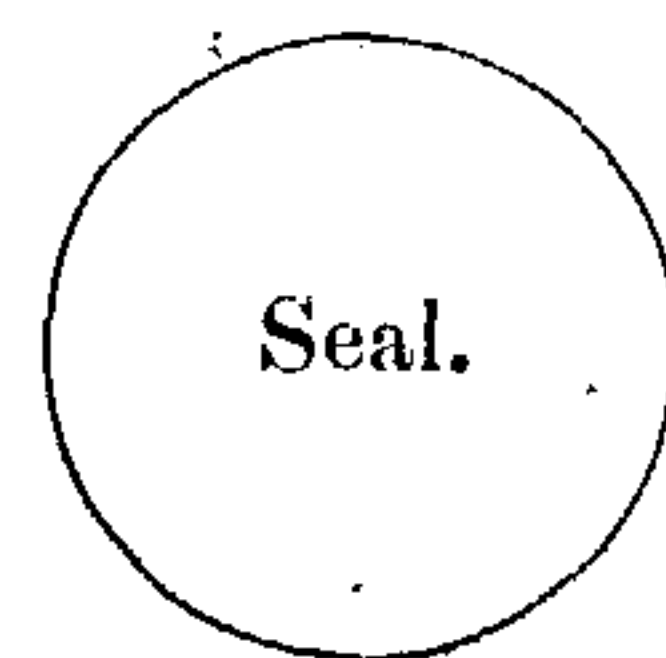
(g) They shall make and carry out all necessary arrangements with the Post Office as to shifting poles and wires and with the Company as to new positions for same:

(h) They shall provide stone channels with gullies and earthenware drain pipes at the foot of all new or altered slopes and embankments and shall where retaining walls occur make proper provision for carrying water through such walls into the channels by means of suitable weepholes and rubble drainage at the back of such walls the outlets of such drains to be connected at the bottom of the bridge approaches with the local authority's system:

(i) They shall provide in accordance with the plan and elevations annexed to the above-written agreement and Nod. 36,695 the steps (at the point marked R on the said Plan No. 36,893) leading to the double cottage with a landing half-way down with two flights of steps leading therefrom right and left to each of the respective cottages:

(j) They shall reinstate and make good any shrubs or plants which may be disturbed and any flower beds and paths in the cottage gardens which may be damaged by any of the foregoing works and properly lay over with soil and sow with grass all slopes and embankments.

The common seal of the county council of Middlesex }  
was hereunto affixed in the presence of



HENRY F. BOWLES

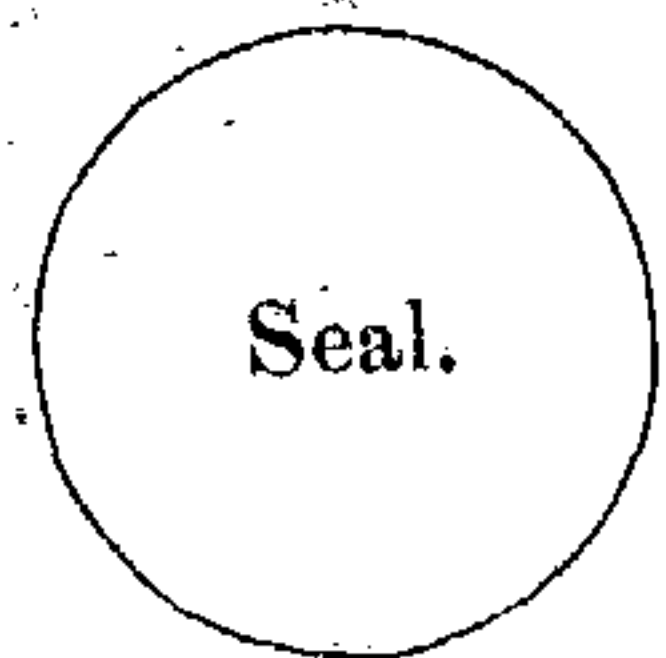
CHARLES L. ATTENBOROUGH

Two members of the County Council.

WALTER GEO. AUSTIN

Clerk of the County Council.

The common seal of the Great Eastern Railway Company }  
was hereunto affixed in the presence of



P. LOMAS Secretary.



THE THIRD SCHEDULE.

A.D. 1912.

(THE EAST LONDON AGREEMENT.)

AGREEMENT made the 20th day of December 1911 between THE EAST LONDON RAILWAY COMPANY (hereinafter called "the East London Company") of the first part THE GREAT EASTERN RAILWAY COMPANY (hereinafter called "the Great Eastern Company") of the second part THE LONDON BRIGHTON AND SOUTH COAST RAILWAY COMPANY (hereinafter called "the Brighton Company") of the third part THE METROPOLITAN RAILWAY COMPANY (hereinafter called "the Metropolitan Company") of the fourth part THE METROPOLITAN DISTRICT RAILWAY COMPANY (hereinafter called "the District Company") of the fifth part THE SOUTH EASTERN RAILWAY COMPANY (hereinafter called "the South Eastern Company") of the sixth part and THE LONDON CHATHAM AND DOVER RAILWAY COMPANY (hereinafter called "the Chatham Company") of the seventh part.

WHEREAS by the East London Railway Act 1882 (hereinafter called the Act of 1882) (section 38) it was provided that a lease in perpetuity of the East London Railway as therein defined should be granted by the East London Company to the Brighton Company the South Eastern Company the Chatham Company the Metropolitan Company and the District Company (in the said Act (section 3) termed the lessees) and as to the rent to be paid by the lessees to the East London Company section 39 of the same Act contains the following provisions:—

"As from the commencement of the lease the lessees shall be  
"liable to pay and shall pay to the Company" (meaning the East London Company) "the annual rent or sum of £30,000  
"and in addition an increase of such annual rent or sum as  
"hereinafter provided that is to say whenever and so long as  
"the gross annual receipts from the traffic of the East London  
"Railway amount to a sum which after deducting or allowing  
"therefrom forty-four per centum thereof for working expenses  
"and Government duty and tolls and station rents if any payable  
"to the Great Eastern Railway Company produces a greater net  
"annual income than the said annual rent or sum of £30,000  
"the whole of the said gross receipts less forty-four per  
"centum thereof to be deducted or allowed as aforesaid shall  
"belong and be paid to the Company Provided always that  
"the Company may at any time after the commencement of the



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“ lease on giving 12 months’ notice to the lessees claim to  
“ have the proportion of the said gross receipts to be deducted  
“ or allowed for working expenses revised by arbitration on the  
“ basis that the same is not to exceed the actual expense of  
“ working”:

And by the Act of 1882 it was further provided (section 46) that the East London Company and each of the lessees should appoint two representatives and that the persons so appointed should form a joint committee for the management and control of the East London Railway (hereinafter called “the joint committee”) and (section 50) that the rent reserved by the lease and the expenses of the joint committee in maintaining and manning the East London Railway should be paid and borne by the lessees in such proportions as should be agreed upon between them or in default of agreement as should be settled by arbitration and (section 56) that the Great Eastern Company should have such option as therein mentioned of becoming one of the lessees of the undertaking of the East London Company jointly with the lessees mentioned in the Act of 1882:

And whereas the Great Eastern Company duly exercised their option under the Act of 1882 and became one of the lessees of the undertaking of the East London Company and appointed two representatives as members of the joint committee:

And whereas by an indenture of lease dated the 30th day of March 1889 and made in pursuance of the Act of 1882 between the East London Company of the one part and the Brighton Company the South Eastern Company the Chatham Company the Metropolitan Company the District Company and the Great Eastern Company (in the said lease called “the lessees” and hereinafter collectively referred to as “the lessee companies”) of the other part the East London Company granted conveyed demised and leased unto the lessee companies the East London Railway as therein defined in perpetuity as from the 1st day of October 1884 under and subject to and in accordance with the provisions contained in the Act of 1882 as amended by section 14 of the Brighton Company’s Act of 1885 concerning the leasing of the East London Railway and by the indenture now in recital the lessee companies jointly covenanted with the East London Company that the lessee companies would pay to the East London Company the fixed annual rent of £30,000 in the Act of 1882 mentioned by successive half-yearly instalments on the 1st day of April and the 1st day of October in each year successively together with such additions (if any) as an increase of the said annual rent as the East London Company might at each of such half-yearly periods have become entitled to under the provisions of the Act of 1882 And by the said lease it was provided that the lessee companies should in any year in which they should have paid to the East London Company for the first half of a year ending on the 1st day of April an additional



sum by way of rent (calculated up to the then preceding 31st. day of December) over and above the fixed half-yearly payment of £15,000 be entitled to take credit for the whole or part as the case might be of such additional sum so paid as part of the rent or additional rent payable on the following 1st October if on making up an entire year's account to the then preceding 30th day of June it should appear either that no additional rent or sum over and above the fixed rent of £30,000 became payable to the East London Company for such year or that the additional sum so paid was in excess of one equal half part of the additional rent or sum payable to the East London Company in respect of such year it being the true intent and meaning of the now reciting indenture that the East London Company should not be entitled to receive more than the said fixed rent of £30,000 in any year unless an entire year's working should entitle the East London Company thereto under the terms of the Act of 1882:

And whereas the joint committee are desirous of having the East London Railway electrified in accordance with the system of electrification now in use on the railways of the Metropolitan Company and the District Company (hereinafter called "the Metropolitan system"):

And whereas it is anticipated that the electrification of the East London Railway will increase the traffic thereon and the gross annual receipts in respect thereof and thereby prove beneficial to the East London Company and the lessee companies respectively:

And whereas the Great Eastern Company are prepared to raise such moneys as may be necessary for carrying out the electrification of the East London Railway in manner aforesaid and other works incidental thereto on the terms and subject to the conditions in that behalf hereinafter expressed concerning the same subject nevertheless as between the lessee companies to such modifications thereof as may hereafter be agreed upon between the lessee companies themselves:

Now it is hereby agreed by and between the several companies parties hereto so far as their respective interests in the subject matter of this agreement are intended to be hereby affected:—

1.—(1) The East London Railway shall be electrified on or according to the Metropolitan system by and under the management and control of the joint committee as hereinafter provided (2) The electrification works for that purpose shall be carried out under the supervision of Arthur R. Cooper or other the engineer for the time being of the District Company William Willox or other the engineer for the time being of the Metropolitan Company and Percy Crosland Tempest or other the engineer for the time being of the South Eastern Company respectively (hereinafter referred to as the said engineers) in accordance with plans and specifications to be submitted to and approved by the joint committee (3) The said electrification works shall be carried out so as not to interfere with or prejudice the Great Eastern Company



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A.D. 1912. or any other of the lessee companies in the exercise of their existing rights of user for steam traction or otherwise over the East London Railway (4) Any works in connection with the electrification of the East London Railway that may have to be carried out on the property of any of the lessee companies shall only be carried out thereon in accordance with plans and specifications prepared by the said engineers and approved by the lessee company on whose property such works may have to be carried out (such approval not to be unreasonably withheld) and otherwise upon such terms as shall be agreed upon between such lessee company and the other lessee companies.

2. Such part (if any) of the said electrification works as the joint committee shall so decide shall be let by them to contractors on contract tenders therefor to be invited by the secretary of the joint committee in accordance with plans and specifications to be prepared by the said engineers and approved by the joint committee.

3. In carrying out the said electrification works the said engineers may in their discretion requisition the services of any of the staff of the Metropolitan Company the District Company and the South Eastern Company respectively.

4. The company or companies the services of whose staff shall be so requisitioned shall every month submit to the joint committee pay sheets showing the wages paid the value of materials used and the expenses incurred in respect of such staff and the amounts when certified by the said engineers shall be repaid by the joint committee to such company or companies with such commission thereon for management as may from time to time be agreed upon in that behalf.

5. Subject as aforesaid the joint committee may authorise the said engineers to employ on their behalf a special staff for all or any part of the said electrification works and shall pay all wages and other expenses connected with such employment when certified by the said engineers.

6. The joint committee may make such arrangements for obtaining a supply of electrical energy from the District Company or from any other company corporation or municipality on such terms as may be agreed upon between the joint committee and the company corporation or municipality from which such supply is to be obtained.

7. The Great Eastern Company shall raise a net sum not exceeding £90,000 sterling for the purposes of the electrification of the East London Railway and otherwise for the purposes of this agreement by the creation and issue of 4 per cent. debenture stock of the Great Eastern Company of such an amount as shall be necessary for such purposes (but such stock shall not be issued at a discount except with the consent of the joint committee) and shall pay the moneys so to be raised as aforesaid to the joint committee as and when received by the Great Eastern Company and such committee



shall apply the same for the purposes and in manner hereinafter provided that is to say:— A.D. 1912.

First in paying to the Great Eastern Company a proper proportion of the costs to be incurred by that Company in applying for parliamentary powers as hereinafter provided for effectuating this agreement and also all expenses including stamp duty incurred in the creation and issue of debenture stock for the purpose of raising such sum as aforesaid;

Secondly in refunding to the Great Eastern Company and such others (if any) of the lessee companies as may advance or expend the same all moneys advanced or expended by them respectively in or about the said electrification works of the East London Railway pending the raising of the necessary moneys by the Great Eastern Company for that purpose under this agreement if and when sanctioned by Parliament together with interest on moneys so advanced or expended from the date of such advance or expenditure at the rate of £4 per cent. per annum;

Thirdly in repaying to the several parties hereto their costs charges and expenses of and incidental to the preparation and completion of this agreement and consequent thereon (including the costs charges and expenses of and incidental to any application to Parliament for the purpose of effectuating this agreement and of and incidental to any agreement supplemental hereto);

Fourthly in paying to the said engineers all charges properly made by them in or about and incidental to the said electrification works and other works incidental thereto;

Fifthly in paying the cost and expenses of and incidental to the construction and equipment of the said electrification works and other works incidental thereto not hereinbefore otherwise provided for; and

Sixthly in discharging all claims for compensation for accidents and otherwise arising out of the carrying out of the said works.

If any question shall arise between any of the parties hereto with respect to the payments in this article mentioned the same shall be determined by arbitration in accordance with the provisions in that behalf contained in the Act of 1882.

8. The interest at £4 per cent. per annum on the debenture stock which shall be created and issued by the Great Eastern Company as aforesaid shall be borne and paid by the lessee companies (including the Great Eastern Company) to the Great Eastern Company half-yearly as from the date of the issue of such stock rateably and in the same proportions in which the rent under the said lease of the 30th day of March 1889 and the expenses of the joint committee are to be borne and paid by the lessee companies.



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A.D. 1912. by virtue of section 50 of the Act of 1882 and the other lessee companies shall guarantee the payment of their respective proportions of such interest to the Great Eastern Company accordingly and shall indemnify the Great Eastern Company in respect of the same.

9. Notwithstanding anything to the contrary contained in section 39 of the Act of 1882 or in the said lease of the 30th day of March 1889 in every year after the East London Company shall have received the minimum rent at the rate of £30,000 under the said lease any additional sum by way of rent which would be payable to the East London Company shall be applied by the joint committee in the first place in or towards repayment to the lessee companies (including the Great Eastern Company) of such interest on the debenture stock to be issued as aforesaid as shall have been borne or paid by those companies respectively in such year or in any previous year under the last preceding clause so long as any such interest shall not have been made good to the lessee companies together with interest thereon at the rate of £4 per cent. per annum and the residue (if any) of such additional sum shall be paid to the East London Company.

10. The proviso to section 39 of the Act of 1882 shall be repealed. The said lease of the 30th day of March 1889 shall be amended so as to give effect to the provisions contained in the last preceding article hereof.

11. For the purpose of effectuating this agreement the Great Eastern Company shall insert in their next Bill in Parliament appropriate clauses with the object of obtaining parliamentary powers for carrying out the several provisions hereof and shall use their best endeavours to obtain an Act for that purpose.

12. The several parties hereto will respectively execute and do all such instruments acts and things as shall be necessary or expedient for the purpose of carrying into effect the provisions herein contained and in particular the East London Company and the lessee companies respectively will submit to Wharncliffe meetings of their proprietors the several clauses which shall be inserted by the Great Eastern Company in their next Bill for the purpose of obtaining parliamentary powers for carrying out the several provisions of this agreement and use their best endeavours to obtain the approval of such provisions by such Wharncliffe meetings so as to comply with the Standing Orders of Parliament and the East London Company will use their best endeavour to obtain such other consents (if any) as may be necessary for the purposes of this agreement and obtaining the sanction of Parliament thereto.

13. Except as herein otherwise expressed or necessarily implied no pecuniary liability shall be imposed on or incurred by the East London Company in respect of the premises.

14. This agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House



of Parliament making such alterations therein as the East London Company or the lessee companies shall consider opposed to the objects of this agreement any of such parties may withdraw therefrom by notice in writing to the other or others of them under the seal or seals of the company or companies giving such notice. A.D. 1912.

15. All differences relating to the said electrification works which may at any time arise between any of the parties hereto shall be settled by an arbitrator to be agreed upon or in case of disagreement to be appointed on the application of any or either of the parties to any such difference by the President for the time being of the Institution of Civil Engineers.

In witness whereof the parties hereto have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the East London Railway Company was hereunto affixed in the presence of

R. LACEY

Secretary.

Seal of the  
East London  
Railway  
Company.

The common seal of the Great Eastern Railway Company was hereunto affixed in the presence of

P. LOMAS

Secretary.

Seal of the  
Great Eastern  
Railway  
Company.

The common seal of the London Brighton and South Coast Railway Company was hereunto affixed in the presence of

J. J. BREWER

Secretary.

Seal of the  
London Brighton  
and South Coast  
Railway  
Company.

The common seal of the Metropolitan Railway Company was hereunto affixed in the presence of

W. H. BROWN

Secretary.

Seal of the  
Metropolitan  
Railway  
Company.



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A.D. 1912.

The common seal of the Metropolitan District  
Railway Company was hereunto affixed in  
the presence of

Seal of the  
Metropolitan  
District  
Railway  
Company.

G. H. WALKER  
Secretary pro tem.

The common seal of the South Eastern Rail-  
way Company was hereunto affixed in the  
presence of

Seal of the  
South Eastern  
Railway  
Company.

CHAS. DAVIS  
Asst. Secretary.

The common seal of the London Chatham  
and Dover Railway Company was hereunto  
affixed in the presence of

Seal of the  
London Chatham  
and Dover  
Railway  
Company.

L. W. LIVESEY  
Secretary.

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